

Dated

22 August

2025

LEASE

relating to

Fourth Floor, 10-12 Russell Square House, Russell Square, London, WC1

**VISTRA TRUST COMPANY (JERSEY) LIMITED AND VISTRA (C.I.) LIMITED ACTING IN
THEIR CAPACITY AS JOINT TRUSTEES OF THE RUSSELL SQUARE HOUSE UNIT
TRUST**

and

SYSTEMIQ LIMITED

LawrenceStephens*

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PRESCRIBED PARTICULARS

LR1. Date of Lease	22 August 2025.
LR2. Title Number(s)	LR2.1 Landlord's title number(s) <i>Title number(s) out of which this Lease is granted, Leave blank if not registered.</i> NGL737257. LR2.2 Other title numbers None.
LR3. Parties to this Lease <i>Give full names, addresses and company's registered number, if any, of each of the parties. For Scottish companies use a SC prefix and for limited liability partnerships use an OC prefix. For foreign companies give territory in which incorporated,</i>	Landlord VISTRA TRUST COMPANY (JERSEY) LIMITED and VISTRA (C.I.) LIMITED acting in their capacity as Joint Trustees of The Russell Square House Unit Trust both of 4th floor, St Paul's Gate, 22-24 New Street, St Helier, Jersey JE1 4TR. Tenant SYSTEMIQ LIMITED (company number 09950762) whose registered office is at 8th Floor 110 High Holborn, London, United Kingdom, WC1V 6JS.
LR4. Property <i>insert a full description of the land being leased</i> <i>or</i> <i>refer to the clause, schedule or paragraph of a schedule in this Lease in which the land being leased is more fully described.</i> <i>Where there is a letting of part of a registered title, a plan must be attached to this Lease and any floor levels must be specified.</i>	In the case of a conflict between this clause and the remainder of this Lease, then for the purposes of registration, this clause shall prevail. The demised premises known as Fourth Floor, 10-12 Russell Square, London as more particularly described in the definition of the demised premises in clause 1 of this Lease.
LR5. Prescribed statements etc. <i>Prescribed statements are only</i>	[LR5.1] Statements prescribed under rules 179 (dispositions in favour of a charity), 180 (dispositions by a charity) or 196 (leases under the Leasehold Reform, Housing and Urban Development Act 1993)

<i>required in special circumstances relevant to the status of the tenant (e.g. if the landlord or the tenant is a charity - see Rules 179 and 180 of the LR Rules 2003) or the nature of the grant (e.g. as (residential) lease - granted under the Leasehold Lease Housing and Urban Development Act 1993 -see rule 196 of the LR Rules 2003).</i> <i>If this Lease Includes a statement falling within LR5.1, insert under that sub-clause the relevant statement or refer to the clause schedule or paragraph of a schedule in this Lease which contains the statement.</i> <i>If LR5.1 is applicable, in LR5.2 omit or delete those Acts which do not apply to this Lease.</i>	of the Land Registration Rules 2003. Not applicable. [LR5.2 This Lease is made under, or by reference to, provisions of: None.
LR6. Term for which the Property is leased <i>Include only the appropriate statement (duly completed) from the three options</i> <i>NOTE. The information you provide, or refer to here will be used as part of the particulars to identify the lease under rule 4 of the Land Registration Rules 2005.</i>	10 years from and including the date of this Lease to and including 21 day of August 2035.
LR7. Premium <i>Specify the total premium, inclusive of any VAT where payable.</i>	None.
LR8. Prohibitions or restrictions on disposing of this Lease <i>Include whichever of the two statements is appropriate.</i> <i>Do not set out here the wording of the provision. It is only necessary to state</i>	This Lease contains a provision that prohibits or restricts dispositions.

<i>whether or not the lease restricts or prohibits alienation - not to give details of the restrictions or prohibitions - so that HMLR can make the usual note that alienation requires consent.</i>	
LR9. Rights of acquisition etc <i>if any such provisions are contained in this Lease, delete "NONE" and insert the relevant provisions in the sub-clauses or refer to the clause, schedule or paragraph of a schedule in this Lease which contains the provisions.</i> <i>N.B.This section does not extend to break options in favour of either party which do not need to be referred to In the Land Registry prescribed particulars.</i>	LR9.1 Tenant's contractual rights to renew this Lease, to acquire the reversion or another lease of the Property, or to acquire an interest in other land. None. LR9.2 Tenant's covenant to (or offer to) surrender this Lease. None. LR9.3 Landlord's contractual rights to acquire this Lease. None.
LR10. Restrictive covenants given in this Lease by the Landlord in respect of land other than the Property. <i>Insert the relevant provisions or refer to the clause, schedule or paragraph of a schedule in this Lease which contains the provisions.</i>	None.
LR.11 Easements <i>Refer here only to the clause, schedule or paragraph of a schedule in this Lease which sets out the easements.</i>	LR11.1 Easements granted by this Lease for the benefit of the Property As set out in the Schedule 1 Part 1. LR11.2 Easements granted or reserved by this Lease over the Property for the benefit of other property As set out in the Schedule 1 Part 2.
LR.12 Estate rentcharge burdening the Property	None.

<i>This section covers any rentcharge (i.e. the grant of money charged on land payable to one who has no interest in the reversion) granted In fee simple or (or a term of years absolute.</i> <i>Refer here only to the clause, schedule or paragraph of a schedule in this Lease which sets out the rent charge</i>	
L.R13. Application for standard form of restriction <i>Set out the full text of the standard form of restriction and the title against which It is to be entered. If you wish to apply for more than one standard form of restriction use this clause to apply for each of them tell us who is applying against which title and set out the full text of the restriction you are applying for.</i> <i>Standard forms of restriction arc set out in Schedule 4 to the Land Registration Rules 2003 see KH642 (CPD368).</i>	The Parties to this Lease apply to enter the following standard form of restriction [against the title of the Property] or [against title number []]. None.

DATED	PARTICULARS	2025
1. Parties	22 August	
(a) The Landlord	VISTRA TRUST COMPANY (JERSEY) LIMITED and VISTRA (C.I.) LIMITED acting in their capacity as Joint Trustees of The Russell Square House Unit Trust both of 4 th floor, St Paul's Gate, 22-24 New Street, St Helier, Jersey JE1 4TR;	
(b) The Tenant	SYSTEMIQ LIMITED (Company number 09950762) whose registered office is at 8th Floor 110 High Holborn, London, United Kingdom, WC1V 6JS.	
2. Property	Fourth Floor, Russell Square House, 10-12 Russell Square, London, WC1;	
3. Term	10 years from and including the date of this Lease up to and including 21 day of August 2035;	
4. Basic Rent	Four Hundred and Ninety Six Thousand Eight Hundred and Forty Four Pounds (£496,844.00) per annum as reviewed in accordance with the terms of Schedule 5;	
5. Reduced Basic Rent	Two Hundred and Forty Eight Thousand Four Hundred and Twenty Two Pounds (£248,422.00) per annum; 22 May	
6. First Rent Commencement Date	2026;	
7. Second Rent Commencement Date	22 September	2026;
8. Permitted Use	Use as offices within Class E(g)(i) of the Schedule of the Town and Country Planning (Use Classes) Order 1987 (as amended) as it applied in England at the date this Lease was granted);	
9. Rent Review Date	22 August	2030.

THIS LEASE is made on the date and between the parties specified in the Particulars.

AGREED TERMS

1. DEFINITIONS

1.1 The following definitions and rules of interpretation apply to this Lease.

Term	Meaning
“1954 Act”	Landlord and Tenant Act 1954;
“Accountant”	means such independent and reputable chartered or certified accountant as the Landlord may from time to time appoint;
“Accounting Period”	means the annual period commencing on 30 September and expiring on the following 29 September or such other annual period as the Landlord shall in his discretion determine;
“Approved Underlease”	an Underlease approved by the Landlord in accordance with this Lease and, subject to any variations agreed by the Landlord in its reasonable discretion: (a) granted without any premium being received by the Tenant or the payment of a reverse premium to the Undertenant or an indemnity (by a third party or otherwise); (b) reserving a market rent at the time of the grant of the Underlease, taking into account the terms of the underletting but this shall not prevent an underlease providing for a rent-free period or reduced rent periods of a length that does not exceed the period as is then usual in the open market in respect of such a letting whether to allow for fitting out of the Underlet Premises by the Undertenant or otherwise) such rent to be payable at the times and in the

	manner prescribed by this Lease; (c) lawfully excluded from the security of tenure provisions of the 1954 Act; (d) containing provisions: (i) requiring the Undertenant to pay as additional rent the whole or, in the case of an Underlease of a Permitted Part, a due proportion, of the Insurance Rent, Service Charge and other sums due under this Lease, excluding the Reduced Basic Rent and Basic Rent, payable by the Tenant under this Lease; (ii) for rent review at a five yearly interval and otherwise on the same terms as in Schedule 5; (iii) for change of use and alterations corresponding to those in this Lease; (e) in the case of an Underlease of a Permitted Part, containing provisions requiring the Undertenant to pay by way of a yearly service charge as additional rent a fair and reasonable proportion of the costs incurred by the Tenant in providing all services to the Property that would be usual on an underletting of part, including the payment of quarterly advance payments and a balancing payment at the end of each service charge year; (f) containing a covenant by the Undertenant not to assign the whole of the Underlet Premises or any part of the Underlet Premises; (g) containing a covenant by the
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	Undertenant not to create any Sub-Underlease of the whole or any part of the Underlet Premises; (h) containing a covenant by the Undertenant not to charge, share or part with possession or occupation of the Underlet Premises or any part of it nor create any trust or otherwise dispose of the Underlet Premises or any part of it; (j) containing a condition for re-entry on the same terms as in this Lease; (k) be otherwise on the same terms as this Lease (save as to amount of Reduced Basic Rent and Basic Rent);
“Approved Undertenant”	a person approved by the Landlord (acting reasonably) and who has entered into a direct deed with the Landlord agreeing: (a) to comply with the terms of the Approved Underlease; and (b) to procure that any proposed assignee of the Underlet Premises enters into a direct deed in the same terms as set out in this definition of Approved Undertenant;
“Balancing Payment”	means the sum payable pursuant to paragraph 2.4(b) of Schedule 2;
“Base Rate”	means the base rate for the time being of the Bank of England;
“Building”	means the building known as 10-12 Russell Square House, Russell Square, London WC1 edged blue on Plan 1;
“Common Parts”	means the pedestrian ways, forecourts loading bays, service roads, halls, landings, lifts, lift shafts, staircases, passages and other areas which are from time to time

	during the Term available for common use and enjoyment by the tenants and occupiers of the Building;
“Conduits”	means all sewers, drains, pipes, gullies, gutters, ducts, mains, channels, subways, wires, cables, conduits, flues, fibre optic cables and other conducting media of whatsoever nature;
“Group Company”	means a company which is a member of the same group of companies as the Tenant within the meaning of section 42 of the Landlord and Tenant Act 1954 (as amended);
“Insurance Rent	means a fair and proper proportion of the sum which is equal to the aggregate of:- (a) the gross insurance premiums chargeable to the Landlord from time to time for effecting and maintaining insurances in accordance with clause 7.1 hereof; (b) the cost of valuations and inspections for insurance purposes but not more than once in any three years; and (c) any excess payable under such insurance in the event of damage or destruction of the Property (save where due to the Landlord's neglect or default) by any of the risks against which the Landlord shall have insured;
“Insured Risks”	means fire, explosion, lightning, impact earthquake, aircraft, (other than hostile aircraft) and things dropped from aircraft flood, storm, or tempest bursting or overflowing of water tanks apparatus riot civil commotion or malicious damage subsidence, heave, landslip and terrorism (save where such risk is not available in the normal market at a reasonable premium)

	and such other perils as the Landlord (acting reasonably) may at its discretion from time to time reasonably insure against and an "Insured Risk" means all and/or any one of the foregoing risks;
"Interim Service Charge"	means such sum as the Landlord's Surveyor (acting reasonably and in accordance with this Lease) certifies to be the likely amount of the Service Charge due in respect of each Accounting Period;
"Landlord"	means the party named as the Landlord in the Particulars and includes any other party for the time being entitled to the immediate reversion to this Lease;
"Landlord's Expenses"	means the reasonable and proper costs, charges, commissions, premiums, fees interest and other expenditure reasonably and properly paid or incurred or deemed to be reasonably and properly paid or incurred by the Landlord in respect of or incidental to all or any of the Services or otherwise reasonably and properly required to be taken into account for the purpose of calculating the Service Charge (but excluding those in relation to Vacant Lettable Units);
"Landlord's Surveyor"	means the person from time to time appointed by the Landlord to act as its surveyor for any purpose under this Lease and who may be the Landlord or a person in the employment of the Landlord;
"this Lease"	means this lease and any document which is made supplemental hereto or which is entered into pursuant to or in accordance with the terms hereof;
"Permitted Part"	a part of the Property which shall have independent access for general access and servicing from the public highway, the Common Parts and from those parts of the Property approved by the Landlord and

	being common parts for the use and enjoyment of the Tenant and any permitted undertenants of the Underlet Premises.
“Permitted Use”	means the use specified in the Particulars;
“Plan”	means the plan or plans (if any) annexed;
“Planning Acts”	means the Town and Country Planning Act 1990 the Planning (Listed Buildings and Conservation Areas) Act 1990 the Local Government Planning and Land Act 1980 the Planning (Hazardous Substances) Act 1990 the Environmental Protection Act 1990 the Planning (Consequential Provisions) Act 1990 the Planning and Compensation Act 1991 the Environment Act 1995 and any statutory modification or re-enactment of the same for the time being in force and any regulations or orders made thereunder and any subsequent legislation of a similar nature;
“Plant”	means all mechanical electrical and other plant machinery and equipment in use for common benefit serving the Building from time to time including without prejudice to the generality of the foregoing the following: (a) goods and passenger lifts, lift shafts, escalators; (b) heating, cooling, lighting, air conditioning equipment; (c) cleaning equipment and equipment for the collection, treatment. packaging and disposal of refuse; (d) internal and public telephones, public address systems and closed circuit television; (e) fire precaution equipment and fire and burglar alarm systems; and

	(f) stand-by and emergency systems;
“Prescribed Rate”	means interest at an annual rate of four per centum above Base Rate from time to time during any period for which any payment of interest accrues due under this Lease;
“Property”	means the premises briefly described in the Particulars and edged red on Plan 2 and includes: (a) the floor and ceiling finishes but not any other part of the floor slabs and ceiling slabs forming the boundary of the premises; (b) the inner half severed medially of the internal non-loadbearing walls that divide the premises from any other parts of the Building; (c) the interior plaster and decorative finishes of all walls forming the boundary of the premises; (d) the doors and windows and door and window frames at the premises; (e) those Conduits and any other equipment and apparatus which are within and exclusively serve the premises; (f) all Landlord's fixtures and fittings in or forming part of the premises; and (g) any additions alterations and improvements to the premises but excludes the roof and the roof space foundations and all structural or loadbearing walls, columns, beams and supports and all tenant's and trade fixtures and fittings;
“Reinstatement Cost”	means the amount which the Landlord (having taken appropriate professional advice) may determine from time to time as

	being equal to the full cost of reinstating the Property (or such greater amount as the Tenant may reasonably request in writing from time to time) having regard to any possible increases in building costs together with the cost of demolition shoring up site clearance ancillary expenses and architects' surveyors' and other professional fees and Value Added Tax on all the items mentioned in this definition;
"First Rent Commencement Date"	means the date for commencement of payment of the Reduced Basic Rent specified in the Particulars;
"Second Rent Commencement Date"	means the date for commencement of payment of the Basic Rent specified in the Particulars;
"Reserved Rents"	means the rents from time to time payable in accordance with clause 3;
"Retained Parts"	means the parts of the Building that are not let or constructed or adapted for letting including such parts of the structure walls foundations and roofs of the Building not included in the Property or demised by leases of other premises in the Building and includes any party walls between the Building and any adjoining premises;
"Service Charge"	means a fair and reasonable proportion of the Landlord's Expenses subject to any adjustments made by the Landlord under the provisions of Schedule 2 Part 1 paragraph 2.6;
"Services"	means the services, facilities and amenities specified in part 2 of schedule 2;
"Specified Period"	means a period of eighty years from the commencement of the Term and whenever in this Lease any party is granted a future interest there shall be deemed to be included in respect of every such grant a

	provision requiring the future interest to vest within the stated period and for it to be void for remoteness if it shall not have so vested;
“Sub-Underlease”	any sub-underlease created out of an Underlease;
“Surety”	means the party (if any) named as the Surety in the Particulars and in the case of individuals their personal representatives;
“Tenant”	means the party named as the Tenant in the Particulars and includes the successors in title of the Tenant;
“Term”	means the period of years stated in the Particulars;
“Termination Date”	means the determination of the Term whether by effluxion of time, re-entry, notice surrender or any other means or cause whatsoever;
Underlease”	the underlease granted following the approval of the Approved Underlease;
“Uninsured Risk”	a) means any risk expressly specified in the Insured Risks definition that: is not insured against because, at the time the insurance is taken out or renewed, insurance is not generally available in the UK market on normal commercial terms; Or b) is not, at the date of the damage or destruction, insured against by reason of a limitation or exclusion imposed by the insurers but will not include loss or damage (or the risk of it) caused by reason of a Tenant’s default.

“Underlet Premises”	the premises let by an Underlease;
“Vacant Lettable Units”	means any unit in the Building which is vacant and capable of letting; and
“Value Added Tax”	means the tax chargeable under the Value Added Tax Act 1994 (the "Act") or under any legislation replacing the same or under any legislation which the Act replaced and shall further mean Value Added Tax at the rate in force when the relevant supply is made and any tax of a similar nature which is introduced in substitution for or as an addition to such tax from time to time and any penalties or fines in relation thereto.

2. INTERPRETATION

2.1 Access and Rights

References to any right of the Landlord to have access to or other rights over the Property shall be construed as extending to any superior landlord and any mortgagee or receiver of the Landlord or any superior interest in the Property and to all persons authorised by the Landlord any such superior landlord mortgagee or receiver.

2.2 Act or default of the Tenant

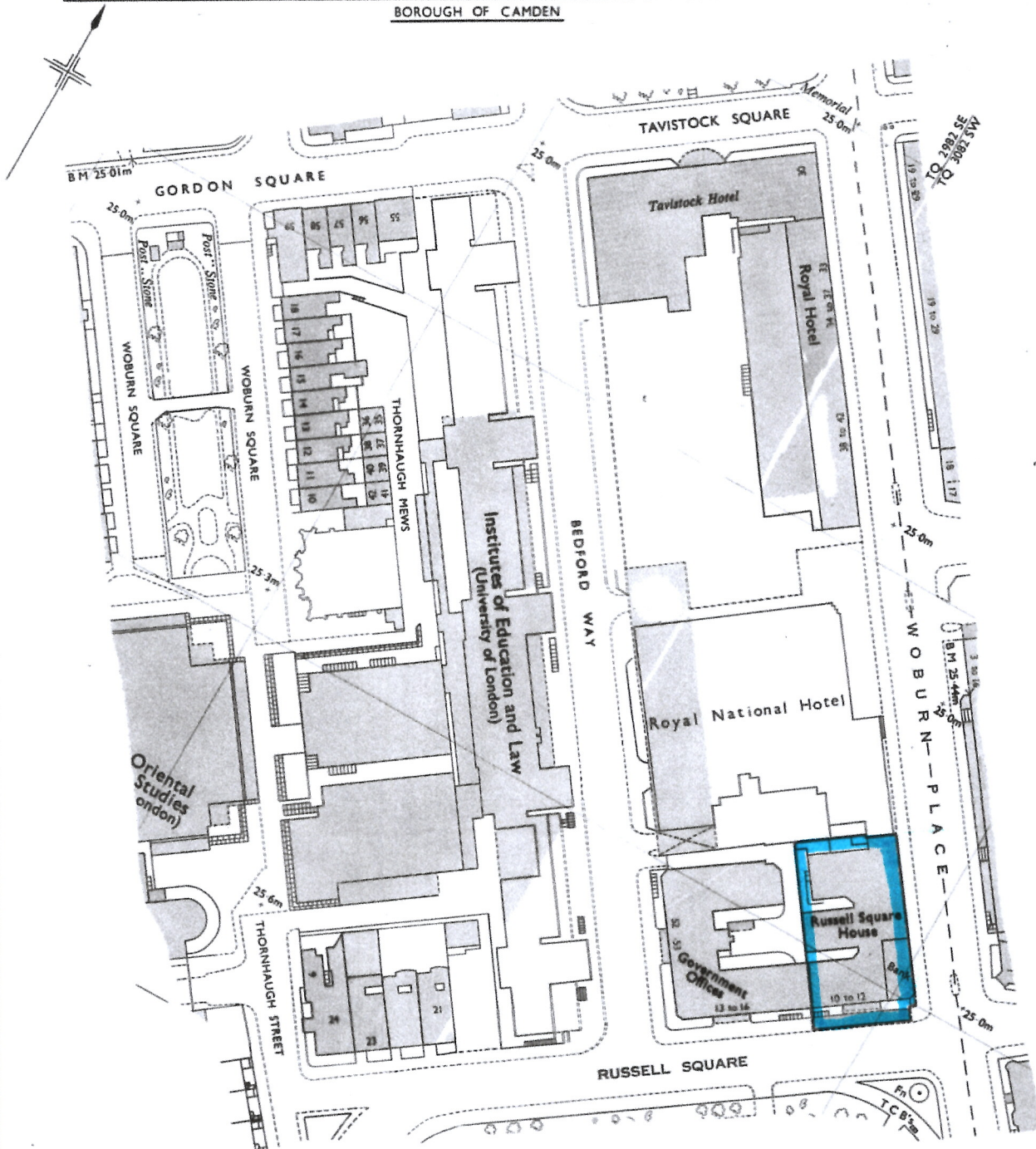
References to the "act or default of the Tenant" or words to similar effect shall be construed as including any omission of the Tenant and any act default or omission of a sub-tenant of the Tenant or anyone else at the Property with the Tenant's actual or implied authority other than the Landlord or the Landlord's agents, contractors, agents or employees.

2.3 Approvals of any superior landlord and mortgagee

Any provision in this Lease requiring the consent or approval of the Landlord shall be construed as also requiring the consent or approval of any mortgagee of the Landlord or any superior interest in the Property and any superior landlord where such consent shall be required.

H.M. LAND REGISTRY		TITLE NUMBER	
		NGL737257	
ORDNANCE SURVEY PLAN REFERENCE	COUNTY	SHEET	NATIONAL GRID
	GREATER LONDON		TQ 2982
			SECTION V
Scale: 1/1250			© Crown copyright 1979

BOROUGH OF CAMDEN



Plan 1

Signed by:

Paul Nash

950FB628F5C64B1...

Paul Nash

Signed by:

Paul Le Marquand

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Paul Le Marquand



GENERAL NOTES: Do not scale from this drawing. Check drawing on receipt and immediately report any discrepancies to the Architect. Verify all dimensions and levels on site prior to construction. The contents of this drawing are the property of Stiff + Trevillion Architects LLP and shall not be re-used without their written permission.		No. Date Revision Notes	
A	19/9/16	DEMISE LINE REVISION	
B	20/9/16	OS DEMISE LINE REVISION	
C	30/9/16	OS DEMISE LINE REVISED	

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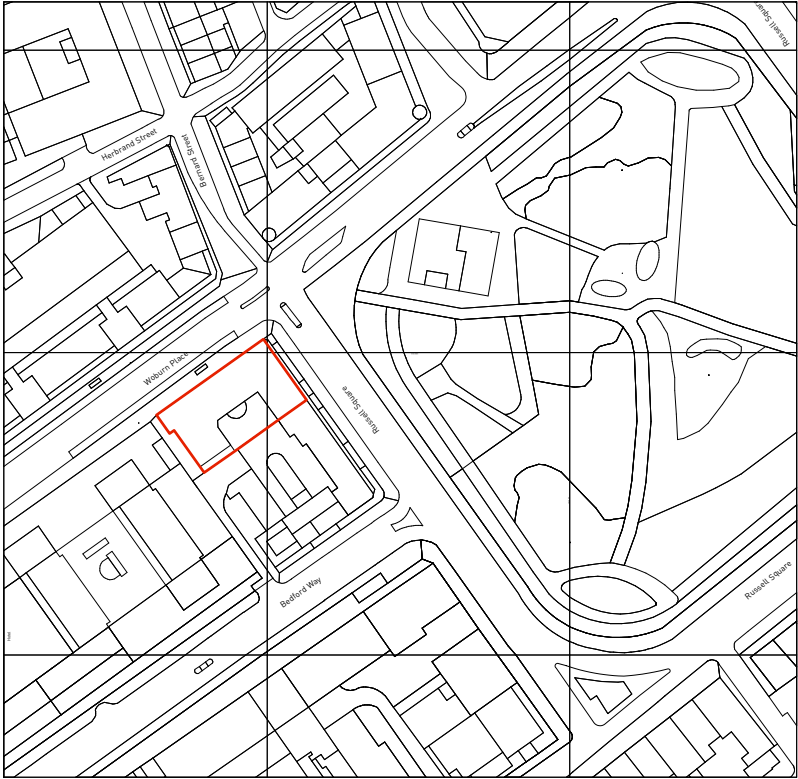
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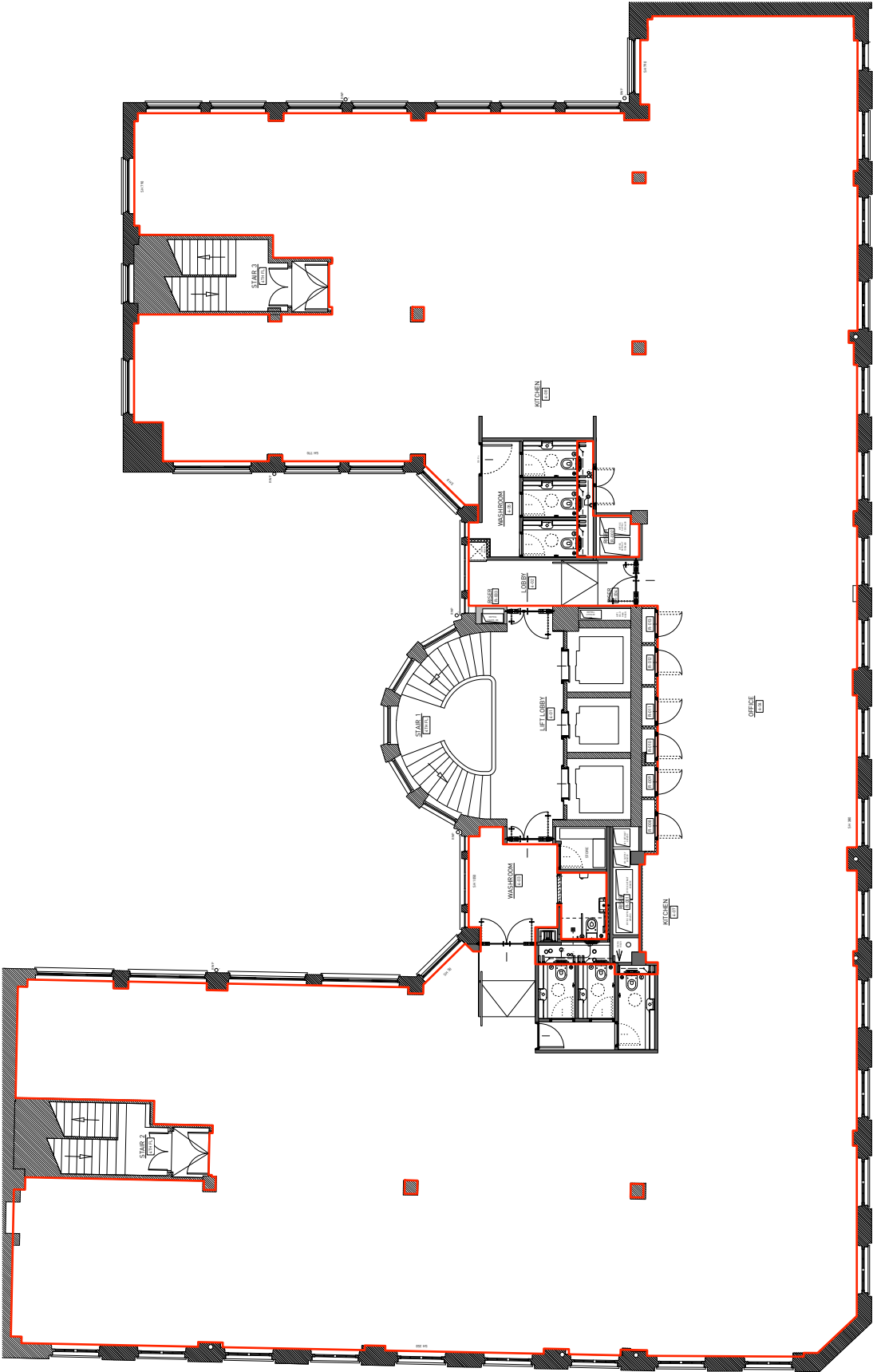
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Project	RUSSELL SQUARE HOUSE		
Drawing	LONDON WC1B 5EH		
	FOURTH FLOOR		
Project No	3396	Drawing No	016
Scale	1:100 @ A1	Date	JANUARY 2014
	1:200 @ A3	Revised	



1 OS MAP - SITE LOCATION
Scale: 1:1250



2 FOURTH FLOOR - DEMISE PLANS
Scale: 1:100

Signed by:

Paul Nash

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Paul Nash

Signed by:

Paul Le Marquand

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Paul Le Marquand

2.4 Consent of the Landlord

References to "consent of the Landlord" or words to similar effect mean a consent in writing signed by or with the express authority of the Landlord and references to "approved" and "authorised" or words to similar effect mean approved or authorised in writing by or with the express authority of the Landlord.

2.5 Gender and number

Words importing one gender include all other genders and words importing the singular include the plural and vice versa.

2.6 Headings

Any marginal notes footnotes headings index and underlinings shall not affect the construction of this Lease.

2.7 Joint and Several

Where the Landlord the Tenant or the Surety for the time being are two or more persons obligations expressed or implied to be made by or with such party shall be deemed to be made by or with such persons jointly and severally.

2.8 Last year of and expiration of the Term

References to "the last year of the Term" include the last year of the Term howsoever determined and references to "the expiration of the Term" shall include all other means of determination of the Term.

2.9 Not to permit or suffer

Any covenant by the Tenant not to do an act or thing shall be construed as including an obligation not to permit or suffer such act or thing to be done by another person.

2.10 Statute

Any reference to a specific statute includes (save where otherwise provided):

- (a) any statutory extension modification or re-enactment of such statute (whether before or after the date of this Lease); and

(b) any regulation or order made under any statute,

and any general reference to "statute" or "statutes" includes any statute or statutes for the time being in force whether enacted before or after the date of this Lease and any regulations or orders made under such statute or statutes.

2.11 Superior Landlord

Any reference to a superior landlord includes the Landlord's immediate reversioner (and any superior landlords) at any time and performance of a landlord's covenant in this Lease by a superior landlord shall be treated for all purposes as though such covenant had been performed by the Landlord.

3. DEMISE

3.1 The Landlord demises the Property to the Tenant with full title guarantee TOGETHER WITH the rights specified in part 1 of schedule 1 but EXCEPTING AND RESERVING the rights specified in part 2 of schedule 1 SUBJECT TO and with the benefit of the matters contained in or referred to in the documents listed in part 3 of schedule 1 insofar as they affect or relate to the Property TO HOLD the Property unto the Tenant for the Term YIELDING AND PAYING unto the Landlord during the Term:

(a) yearly and proportionately for any fraction of a year:

(i) from and including the date of this Lease until and including the day before the First Rent Commencement date: one peppercorn;

(ii) from and including the First Rent Commencement Date until and including the day before the Second Rent Commencement Date: the Reduced Basic Rent;

(iii) from and including the Second Rent Commencement Date the Basic Rent the Reduced Basic Rent and the Basic Rent as the case may be to be paid by equal quarterly payments in advance on the four usual quarter days in every year, the first payment being a proportionate sum in respect of the period from and including the First Rent Commencement Date to the day before the Second Rent Commencement Date to be made on the First Rent Commencement Date;

(b) by way of further rent:

(i) the Interim Service Charge and the Balancing Payment as shall become payable under and in accordance with schedule 2;

- (ii) the Insurance Rent payable on ¹written demand; and
- (iii) any Value Added Tax which may be chargeable on any of the Reserved Rents or other sums reserved or payable under this Lease on written demand.

3.2 The Landlord shall provide the Tenant with a valid Value Added Tax invoice in respect of such Value Added Tax payable to the Landlord by the Tenant under this Lease.

4. **TENANT'S COVENANTS**

The Tenant covenants with the Landlord as follows:

4.1 Rents

- (a) To pay the Reserved Rents at the times and in the manner aforesaid without any deduction or abatement whatsoever (except for any tax required by statute to be deducted) and not to exercise or seek to exercise any right or claim to withhold payment or any right or claim to legal or equitable set-off.
- (b) If so required by the Landlord in writing on reasonable notice to pay the Basic Rent by way of banker's standing order.

4.2 Outgoings

To pay and indemnify the Landlord against all existing and future rates, taxes, duties charges, assessments, impositions and outgoings whatsoever (whether parliamentary parochial local or of any other description and whether or not of a capital or non-recurring nature or of a wholly novel character) which now are or may at any time during the Term be payable in respect of the Property or by the owner or occupier of it except any tax (other than Value Added Tax or any substituted or similar tax payable under this clause 4) in respect of;

- (a) the Reserved Rents;
- (b) the grant of this Lease; and
- (c) any dealing or deemed dealing by the Landlord with the reversion immediately expectant on the determination of the Lease,

and in the case of an assessment which relates to the Property together with other premises to pay the Landlord a fair proportion (to be reasonably determined) of any such outgoings.

4.3 Interest and Arrears

If the Tenant shall fail to pay the Reserved Rents or any part thereof within 10 days

of the due date the Tenant shall (if the Landlord shall so require) pay to the Landlord interest at the Prescribed Rate on the Reserved Rents or other such sums from the due date until payment (whether or not there is a court judgment) **PROVIDED THAT** this sub-clause shall not prejudice any other right or remedy in respect of such money.

4.4 Value Added Tax

- (a) All payments due to the Landlord under this Lease shall be exclusive of Value Added Tax and the Tenant shall in addition to such payments pay the full amount of any Value Added Tax which the Landlord is entitled or required to charge at any time.
- (b) Where the Tenant reimburses the Landlord's costs under this Lease to pay Value Added Tax payable by the Landlord in so far as the Landlord cannot recover the same.

4.5 Repair and decoration

- (a) To keep the Property clean and in good and substantial repair and condition.
- (b) To keep clean the Tenant's fixtures and fittings in the Property.
- (c) To clean prepare and paint (with not less than two coats of good quality paint) or polish or otherwise treat in an appropriate manner all materials, surfaces and finishes of the Property including all wood, plastic, metal and stonework not requiring painting papering or polishing and to wash all surfaces requiring washing such works to be carried out at intervals of not more than five years and also in the last six months of the Term but not more than twice in the same 18 month period.

PROVIDED THAT:

- (a) All work referred to in this clause 4.5 shall be carried out in a good and workmanlike manner with good quality materials and a reasonable standard.
- (b) Decoration and papering and treatment carried out in the last six months of the Term shall be carried out in such colour or colours as shall first be approved in writing by the Landlord's Surveyor (acting reasonably and without delay).
- (c) Damage by an Insured Risk and Uninsured Risk is excepted from the Tenant's liability under this clause 4.5 and 4.6 save to the extent that, in respect of an Insured Risk, the insurance money is irrecoverable by reason of any act or default of the Tenant.

4.6 Maintenance

- (a) To keep the Conduits which solely serve the Property clear and unobstructed and in good and proper working order.
- (b) To comply with all requirements of the statutory authorities with regard to any Conduits, apparatus, ventilation and sprinkler system and other equipment at the Property and to keep all such apparatus, ventilation and sprinkler systems and other equipment in good repair and working order at all times.
- (c) Not without the Landlord's written consent (which consent shall not be unreasonably withheld or delayed) to carry out any work to or make any alteration or extension to any such Conduits apparatus systems or other equipment as is referred to in clause 4.6(b).
- (d) To comply with any requirements in all maintenance manuals relating to the constituent parts of the Property and relating to plant and machinery therein.
- (e) To clean the windows and other lights and any glass in the doors of the Property as often as reasonably necessary.

4.7 Repair on notice

- (a) To make good within a reasonable period any failure to repair, maintain or decorate the Property for which the Tenant is liable and of which the Landlord has given notice in writing starting the necessary work as soon as is reasonably practicable and then proceeding diligently and without interruption (where possible).
- (b) If the Tenant does not comply with clause 4.7(a):
 - (i) to allow the Landlord on reasonable notice to enter the Property and make good any such failure to repair maintain or decorate; and
 - (ii) to pay on written demand the proper costs of doing so such sums being recoverable either as a debt or as rent in arrears at the option of the Landlord.

4.8 Permit entry

To permit the Landlord and all others authorised by it at reasonable hours and on reasonable notice, of not less than 5 days (but in case of emergency in accordance with the Tenant's security protocol) to enter the Property for the purpose of:

- (a) viewing and making a written record of the condition of the Property (including for the purpose of carrying out insurance valuations and inspections);
- (b) repairing, maintaining, altering or cleaning any part of the Building or any

neighbouring premises;

- (c) repairing, maintaining, cleaning, altering replacing or adding to any Conduits which serve any part of the Building or any neighbouring premises; or
- (d) complying with any of its obligations under this Lease or a superior lease of the Property or any part of the Building or any neighbouring premises

or for any other reasonable purpose connected with the Property or the Building **PROVIDED THAT** the persons so entering shall comply with the Tenant's reasonable requirements and security arrangements and the Landlord shall cause as little inconvenience to the Tenant as is reasonably practicable and shall with all reasonable speed make good all damage to the Property and its contents caused by such entry.

4.9 Letting/sale boards

To permit the Landlord to exhibit on a suitable part of the Property in the last twelve months of the Term a notice that the same is to be let or at any time a notice that the same is to be sold (but provided that any such notice shall not obstruct or interfere with the Tenant's user of the Property) and to permit the Landlord to have access on reasonable notice for the purposes of sale or letting.

4.10 Restrictions on alienation

- (a) Not to:
 - (i) assign part only of the Property;
 - (ii) assign the whole of the Property to a Group Company;
 - (iii) share the possession or occupation of the whole or any part of the Property save as hereinafter provided;
 - (iv) part with the possession or occupation of the whole or any part of the Property except by a permitted assignment;
 - (v) assign or permit the occupation of the Property or any part thereof by or the vesting of any interest or estate therein in any person firm, company or other body or entity which has the right to claim diplomatic immunity or exemption in relation to the observance and performance of the covenants and conditions of and contained in this Lease;
 - (vi) underlet the whole of the Property or the whole of a Permitted Part without the Landlord's prior written consent (which shall not be unreasonably withheld or delayed) and such underletting must be by way of an Approved Underlease to an Approved Undertenant and in accordance with clause 4.10(d);

- (b) Not to assign the whole of the Property without first obtaining the prior written consent of the Landlord (which shall not be unreasonably withheld or delayed) and the Landlord and the Tenant agree that for the purposes of section 19(1A) of the Landlord and Tenant Act 1927 the Landlord may (without prejudice to the right of the Landlord to refuse consent on any other reasonable ground) withhold consent to an assignment if any of the following circumstances exist at the date of the application for consent:
 - (i) the Tenant has not paid in full all reserved rents under this Lease; or
 - (ii) the covenant strength of the assignee (when assessed with the covenant strength of any proposed guarantor) is in the reasonable opinion of the Landlord not sufficient for the Tenant to be able to comply with the Tenant's obligations in this Lease, disregarding any authorised guarantee agreement given by the Tenant to the Landlord; or
 - (iii) if any of the following conditions are not satisfied:
 - (A) where reasonably required on or before completion of any assignment the Tenant and any guarantor of the Tenant shall have entered into an authorised guarantee agreement in the form set out in schedule 4;
 - (B) if reasonably required by the Landlord (i) on or before completion of the assignment to it if reasonably so required the assignee shall have deposited with the Landlord an amount not less than six months of the Basic Rent payable at the date of the assignment as security for the performance of the Tenant's covenants in this Lease; or
 - (C) on or before completion of the assignment if the Landlord shall reasonably so require the assignee shall have procured an acceptable guarantor or guarantors who shall execute and deliver to the Landlord a deed containing direct covenants by such guarantor (or if more than one such guarantor joint and several covenants) with the Landlord in the terms contained in schedule
- (c) Not to mortgage or charge the whole or any part of the Property.
- (d) (i) Not to underlet the Property without:
 - (a) obtaining any and all requisite consents of any Superior Landlord or mortgagee and complying with any lawfully imposed conditions of such consent;
 - (b) obtaining a direct covenant from the Undertenant to the Landlord to perform and observe the Tenant's Covenants (other than payment of the Reduced Basic Rent and Basic Rent) so far as they relate to the

Underlet Premises and to perform and observe the covenants in the Underlease;

- (c) the Tenant procuring an acceptable surety (or if more than one, sureties who covenant jointly and severally) if reasonably required by the Landlord for any proposed Undertenant who has or have executed and delivered to the Landlord a deed containing the covenants and provisions in such form as the Landlord may reasonably require; and
- (ii) The grant of an Underlease must not at any time result in the Property being the subject of any more than two underlettings. If the Property is at any time and from time to time subject to two Underleases at the same time then the aggregate of the Underlet Premises let by those Underleases together with any common parts between them (and which shall be located within the Property) shall be no less than the Property.
- (iii) The Tenant must not:
 - (A) vary or waive (expressly or by implication any breach by an Undertenant of any terms of its Underlease;
 - (B) enter into any collateral deed or side letter varying or relieving the Undertenant from any obligation or liability in or under the terms of the Underlease; or
 - (C) accept a surrender (of whole or part) of any Underlease nor agree to do so without the prior written consent of the Landlord (such consent not to be unreasonably withheld or delayed).
- (iv) The Tenant must not reduce, defer, accelerate or commute any rent payable under any Underlease.
- (v) The Tenant must provide copies of the notice served on the Undertenant (and any surety of the Undertenant) and the declaration or statutory declaration (as the case may be) provided by the Undertenant (and any surety of the Undertenant) pursuant to sections 24 to 28 (inclusive) of the Landlord and Tenant Act 1954.
- (vi) On any review of the rent payable under any Underlease, the Tenant must:
 - (A) review the rent payable under the Underlease in compliance with its terms;
 - (B) not agree the reviewed rent (or the appointment of any third party to decide it) without the Landlord's approval, such approval not to be unreasonably withheld or delayed

- (C) include in the Tenant's representations to any third party any reasonable representations that the Landlord may require; and
- (D) notify the Landlord what the reviewed rent is within two weeks of its agreement or resolution by a third party.
- (vii) The Tenant must not accept any rent from any Undertenant after the Underlease has expired (however such expiry occurs) and not to permit the Undertenant to hold over but to take all necessary steps reasonably required by the Landlord (at the Tenant's expense) to secure possession and occupation of the Underlet Premises.
- (e) Nothing in this clause shall prevent the Tenant from sharing occupation of the whole or any part or parts of the Property with any Group Company (as the case may be) following prior written notice having been provided by the Tenant to the Landlord **PROVIDED THAT** no relationship of landlord and tenant shall be created or be deemed to exist between such Group Company and the Tenant and the right of any company to share possession of the Property or any part or parts thereof as aforesaid shall forthwith determine upon such company ceasing to be a Group Company or upon the Tenant ceasing to be in occupation of the Property or upon the Termination Date (whichever shall be the earliest).
- (f) Within 21 days of:
 - (i) the death during the Term of any person who has or shall have guaranteed to the Landlord the payment to the Landlord of the rents and the observance and performance of the covenants on the part of the Tenant herein contained; or
 - (ii) a person or body (as the case may be) who has guaranteed to the Landlord as mentioned in sub-clause (i) being adjudged a bankrupt or (being a company) going into liquidation (other than a voluntary liquidation for the purposes of amalgamation or reconstruction of a solvent company in respect of which the Landlord's consent has first been obtained such consent not to be unreasonably withheld) or a receiver administrator administrative receiver or other encumbrancer taking possession of or being appointed in respect of the whole or any part of such person's or body's assets or such person or body making any arrangement with creditors for the liquidation of his or its debts by composition or otherwise or any voluntary arrangement as defined in the Insolvency Act 1986 or ceasing or threatening to cease to carry on his or its business as a whole or becoming unable to pay its debts within the meaning of section 123 of the Insolvency Act 1986,

then to give written notice thereof to the Landlord and if reasonably so required by the Landlord at the expense of the Tenant within a further twenty-eight days to procure some other person reasonably acceptable to the

Landlord to execute a guarantee in respect of the payment of the rents and the observance and performance of the covenants in the form set out in schedule 3 subject to the words "this Lease" therein being amended to read "the Lease" (or in such other form as the Landlord may reasonably require).

4.11 Registration of devolutions etc

Within one month after its date to produce to the Landlord's solicitors every assignment or document evidencing a devolution of the whole or any part of the Property paying a fee in the sum of **SEVENTY FIVE POUNDS (£75)** plus Value Added Tax plus the registration fees payable under any superior leases to the superior landlords for each such registration and at the same time to provide the Landlord's solicitors with a true copy of such assignment or other document.

4.12 Disclosure of Information

Upon every application for consent required by sub-clause 4.10 to disclose to the Landlord when reasonably required such information as to the terms proposed by the Tenant as the Landlord may reasonably require and whenever required by the Landlord to provide in writing full details of the actual occupation of the Property.

4.13 Alterations

- (a) Not to erect any new building or structure on the Property or unite the Property with any adjoining premises nor make any alterations or additions or improvements which affect the main structure or the external appearance of the Property.
- (b) Not without the Landlord's written consent (which consent shall not be unreasonably withheld or delayed) to make any other alterations or additions or improvements of an internal non-structural nature to the Property all such alterations or additions or improvements to be carried out in accordance with plans and specifications previously approved in writing by the Landlord (which consent shall not be unreasonably withheld or delayed).
- (c) Notwithstanding clause 4.13(b) the Tenant may install demountable partitioning without Landlord consent subject to:
 - (i) Obtaining all other necessary consents at the Tenant's own cost and supplying copies of the same to the Landlord;
 - (ii) The proposed works having no adverse effect nor impact on the central heating and/or air conditioning to and serving the Property and
 - (iii) Supplying the Landlord with copies of as build drawings showing the location of any installed demountable partitioning in a timely manner following its installation.

- (d) If the Tenant applies for the Landlord's consent to the making of any alteration or addition or improvement to the Property the Landlord shall be entitled as a condition of such consent (acting reasonably) to require the Tenant to enter into such reasonable covenants with the Landlord as the Landlord may reasonably deem necessary
- (e) At the expiration of the Term to reinstate any works carried out to the Property during the Term such works to be carried out under the supervision of and to the reasonable satisfaction of the Landlord's Surveyor and the Property shall be returned to the Landlord in the condition required by this Lease.
- (f) In the event that the Tenant shall carry out any alteration or addition or improvement to the Property to notify the Landlord in writing immediately following completion of such works of any resulting increase in the Reinstatement Cost.
- (g) In the event of the Tenant failing to observe the covenants in this clause 4.13 it shall be lawful for the Landlord with all necessary materials and appliances to enter upon the Property and remove any alterations or additions or improvements and execute such works as may be necessary to restore the Property to its former state and the proper costs and expenses thereof (including surveyors' and other professional fees) shall be paid by the Tenant to the Landlord on demand together with interest thereon at the Prescribed Rate from the date the Tenant is notified of the failure to observe the covenants in Clause 4.13 until payment.

4.14 Signs and Notices

Not without the prior written consent of the Landlord (such consent not to be unreasonably withheld or delayed) to display any sign or advertisement on the outside of or within the Property so as to be visible from the outside (such signage to be of high quality commensurate with the Building of which the Property forms part).

4.15 Supply Services

- (a) To pay to the suppliers and to indemnify the Landlord against all charges for electricity water telephone and other services consumed or used at or for the Property including any connection and hiring charges and meter rents and (if so required by the Landlord).
- (b) Not to overload the Conduits electrical installation or other services in the Property.

4.16 Use

- (a) Not to use the whole or any part of the Property:
 - (i) for any illegal or immoral purposes.

- (ii) for any offensive, noisy or dangerous trade business or manufacture; or
 - (iii) as a betting office travel agency estate agency or employment agency or government offices; or
 - (iv) otherwise than for the Permitted Use.
- (b) Not to allow any person to reside or sleep on the Property.
 - (c) Not to hold any sale by auction on the Property.

4.17 Nuisance

- (a) Not to do anything upon the Property which is or may become or cause a nuisance or damage or injury to the Landlord or any superior landlord or to the owner tenant or occupier of any neighbouring premises.
- (b) Not to install or use in or upon the Property any machinery or apparatus which causes noise or vibration which can be heard or felt in any neighbouring premises or outside the Property.
- (c) Not to permit any noxious or deleterious effluent or other discharge whatsoever which may cause an obstruction in or injure the Conduits nor permit any effluent or discharge which might or in fact does pollute the air or water in any way to pass from the Property.

4.18 Floor Loading

- (a) Not to impose or permit to be imposed on the floors or walls of the Property any load in excess of that which they are designed to bear and not to suspend or permit to be suspended from the ceiling slabs and/or beams of the Property any load in excess of that which they are designed to bear.
- (b) Without prejudice to the provisions of sub-clause 4.18(a) above not to do anything which may subject the Property to any strain beyond that which it is designed to bear with due margin for safety and in circumstances where it is reasonable for the Landlord to seek such advice to pay to the Landlord on demand all costs reasonably incurred by the Landlord in obtaining any professional advice as to whether the structure of the Property is being or is about to be overloaded.

4.19 Dangerous materials and use of machinery

Not to bring onto or keep in the Property any article or thing which is or is likely to become dangerous, offensive, combustible, inflammable, radioactive or explosive or which might increase the risk of fire or explosion or which would cause nuisance or damage to the Landlord or any tenant owner or occupier of any neighbouring premises.

4.20 Notices

- (a) To supply the Landlord with a copy of any notice order or proposal for a notice or order affecting the Property served on the Tenant or the Property by any competent authority (or received by the Tenant from any undertenant or other person) as soon as reasonably possible after it is received by the Tenant and (subject to the provisions of clause 4.20(b)) without delay to take all necessary steps to comply with any such notice or order.
- (b) At the request and cost of the Landlord to use reasonable endeavours to make or join with the Landlord in making such objections or reasonable representations against or in respect of any such notice or order as the Landlord shall require but provided that it is commercially prudent for the Tenant to do so and it does not prejudice the Tenant's use and occupation of the Property.

4.21 Compliance with statutory requirements

- (a) To execute all works and do all things on or in respect of the Property which are required by the Offices Shops and Railway Premises Act 1963 the Health and Safety at Work etc. Act 1974 and any other present or future Act of Parliament or by any order bye-law or regulation.
- (b) To do everything required under and to comply with all requirements under any present or future UK government or local authority statute order bye-law or regulation as to the use or occupation of or otherwise concerning the Property.
- (c) To comply, where applicable, with the provisions of the Construction (Design and Management) Regulations 1994 (the "CDM Regulations") in connection with any works carried out at the Property by the Tenant and:
 - (i) make a declaration that the Tenant is the only client for the purposes of the CDM Regulations; and
 - (ii) fulfil all obligations of the client; and
 - (iii) at the request of the Landlord during the Term and in any event on expiry of the Term deliver to the Landlord copies of all health and safety files relating to the Property.
- (d) (Without prejudice to the terms of clause 4.21 **Error! Reference source not found.** 4.21(a) and 4.21(c)) to commence all works to the Property for which the Tenant is liable under this clause 4.21 as soon as reasonably practicable after the Landlord has given written notice requiring such works to be commenced and to proceed diligently without interruption with such works and to execute the same with all practicable speed.

- (e) If the Tenant shall not comply with clause 4.21(d) to allow the Landlord to enter the Property to carry out such works and to pay to the Landlord the expense of so doing together with interest thereon at the Prescribed Rate from the date of expenditure to the date of payment.

4.22 Planning Acts

- (a) To comply with the provisions and requirements of the Planning Acts and of any planning permissions relating to or affecting the Property and to indemnify and keep the Landlord indemnified against all actions proceedings claims demands losses costs expenses damages and liability whatsoever in respect of any non-compliance.
- (b) Not to make any application for planning permission in respect of the Property without the prior written consent of the Landlord not to be unreasonably withheld or delayed and in the event of the Landlord attaching any conditions to such consent not to apply for any planning permission save in accordance with those conditions.
- (c) At the expense of the Tenant to obtain and if appropriate to renew all planning permissions and any other consents and to serve all necessary notices required for the carrying out by the Tenant of any operations or the commencement or continuance of any use on the Property which may constitute development within the meaning of the Planning Acts.
- (d) To pay and satisfy any charge or levy imposed under the Planning Acts in respect of any development by the Tenant
- (e) Not to implement any planning permission before it has been approved in writing by the Landlord such approval not to be unreasonably withheld or delayed **PROVIDED THAT** the Landlord may refuse to approve such planning permission on the grounds that any condition contained in it or anything omitted from it or any period referred to in it would be or be likely to be prejudicial to the Landlord's interest in the Property or in any neighbouring premises whether during or following the expiration of the Term.
- (f) Unless the Landlord shall otherwise direct in writing: to carry out and complete before the expiration of the Term:
 - (i) any works required to be carried out to the Property as a condition of any planning permission granted during the Term and implemented by the Tenant whether or not the date by which the planning permission requires such works to be carried out is within the Term; and
 - (ii) any development begun upon the Property in respect of which the Landlord shall or may be or become liable for any charge or levy under the Planning Acts.

- (g) To produce to the Landlord as soon as reasonably possible after written demand all plans documents and other evidence as the Landlord may reasonably require in order to satisfy itself that the provisions of this clause have been complied with.
- (h) If the Tenant shall receive or shall have been entitled to receive any compensation in relation to its leasehold interest in the Property resulting from any restriction imposed upon the use of the Property under or by virtue of Planning Law the Tenant shall on the determination of its leasehold interest prior to the expiration of the Term forthwith make such provision (if any) as is just and equitable for the Landlord to receive its due benefit for such compensation.

4.23 Fire Regulations

- (a) To comply with the requirements of the fire authority the insurers of the Property and reasonable requirements of the Landlord in relation to fire precautions affecting the Property.
- (b) To keep the Property supplied and equipped with such fire detection fighting and extinguishing appliances as shall be required by any statute, the fire authority or the insurers of the Property or, should the Tenant fail to do so, as reasonably required by the Landlord and such appliances shall be open to inspection and shall be maintained to the reasonable satisfaction of the Landlord.
- (c) Not to obstruct the access to or means of working of any fire detection fighting and extinguishing appliances or the means of escape from the Property in case of fire or other emergency.

4.24 Preservation of easements

- (a) To notify the Landlord of any threat of encroachment or acquisition of any right of light or easement over the Property and at the Landlord's cost to preserve so far as the Tenant is able all rights of light and other easements enjoyed by the Property and at the Landlord's cost at all times to afford to the Landlord such facilities and assistance as may enable the Landlord to prevent anyone acquiring any right of light or other easement over the Property.
- (b) Save as otherwise provided in the Licences or permitted under this Lease not to block up darken obstruct or obscure any doorway, passage, window light grating or opening belonging to the Property.

4.25 Landlord's costs

To pay the proper (and in the case of legal costs, reasonable) legal charges surveyor's fees other fees bailiff's charges and disbursements and expenses of the Landlord and of any superior landlords:

- (a) in connection with all applications by the Tenant (including any that are withdrawn) for any consent or approval of the Landlord or the Landlord's Surveyor required by this Lease (whether such consent or approval is granted or refused, unless a court holds that such consent was unreasonably withheld or delayed);
- (b) in connection with the preparation and/or service of a schedule of dilapidations or a notice under section 146 or section 147 of the Law of Property Act 1925 (even if forfeiture is avoided otherwise than by relief granted by the Court); and
- (c) in connection with the recovery or attempted recovery of arrears of rent or other amounts due under this Lease from the Tenant or any Surety and the enforcement of the covenants in this Lease on the part of the Tenant and any Surety or the termination of this Lease whether or not the Tenant is granted relief by agreement or by the Court.

4.26 Indemnity

To be responsible for and to keep the Landlord fully indemnified against all proper damages losses costs and liabilities properly suffered or incurred by the Landlord arising out of:

- (a) any act or default or negligence of the Tenant; or
- (b) any breach by the Tenant of the Tenant's covenants in this Lease.

In respect of any claim covered by the indemnity in clause 4.6(A), the Landlord must:

- (i) give formal notice to the Tenant of the claim as soon as reasonably practicable after receiving notice of it;
- (ii) provide the Tenant with any information and assistance in relation to the claim that the Tenant may reasonably require and the Landlord is lawfully able to provide, subject to the Tenant paying to the Landlord all proper costs incurred by the Landlord in providing that information and assistance; and
- (iii) mitigate its loss (at the Tenant's cost) where it is reasonable for the Landlord to do so.

4.27 Defective Premises

- (a) Promptly to give written notice to the Landlord of any defect in the Property which might give rise to an obligation on the Landlord to do or refrain from doing any act or thing in order to comply with the provisions of this Lease or the duty of care imposed on the Landlord under the Defective Premises Act 1972.

- (b) At all times to display and maintain all notices relating to the condition of the Property which the Landlord may from time to time reasonably require to be displayed at the Property acting in the interests of good estate management.

4.28 Aerials

Not without the written consent of the Landlord (such consent not to be unreasonably withheld or delayed) to erect any aerial satellite dish or any other broadcasting and receiving equipment upon the outside of the Property.

4.29 Yield Up

At the expiration of the Term to give up the Property:

- (a) in such condition as is consistent with the Tenant's covenants in this Lease and any consents for alterations to the Property given by the Landlord or its predecessors in title whether before or during the Term;
- (b) clear of any goods and refuse;
- (c) with all keys of the Property; and
- (d) with all lettering and signs put up by the Tenant removed and all damage caused by such removal made good to the reasonable satisfaction of the Landlord.
- (e) and to return to the Landlord all keys to the vaults in the lower ground floor of the Property.

4.30 Covenants

To observe and perform the covenants restrictions and stipulations and other matters contained in or referred to in the documents listed in part 3 of schedule 1.

4.31 Registration at HM Land Registry

Promptly on the termination or sooner determination of this Lease to apply to HM Land Registry to cancel the registration of all rights granted or reserved by this Lease and any note of this Lease registered against the Landlord's title.

5. **LANDLORD'S COVENANTS**

5.1 Quiet Enjoyment

The Landlord covenants with the Tenant that as long as the Tenant pays the Reserved Rents and complies with the terms of this Lease the Tenant may enjoy the Property peaceably during the Term without any interruption (save as authorised by this Lease) by the Landlord or any person lawfully claiming under or in trust for the Landlord or by title paramount.

5.2 Title Covenants

The Landlord covenants with the Tenant by way of indemnity only to observe and perform the matters contained or referred to in the property and charges registers for title number NGL373257 insofar as the same relate to or affect the Retained Parts and to use its reasonable endeavours to enforce the covenants on the part of the tenants contained in any other leases of the Building.

5.3 Mortgagee's Consent

The Landlord shall use its reasonable endeavours to obtain as soon as reasonably practicable the consent of any mortgagee of the Landlord where such consent is required in connection with any disposition of this Lease.

5.4 Landlord's Contribution

On the date hereof the Landlord will pay to the Tenant a contribution of £5,367.23 in respect of floor boxes (based upon £75 per floor box based on 1:10 sq m on the basis of a Property internal area of 7,703.00 sq ft) ~~and the parties agree that such payment is a reverse premium in accordance with HMRC guidance/requirements.~~

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6. SERVICES

The Landlord covenants with the Tenant as follows:

- 6.1 The Landlord will use all reasonable endeavours to provide the Services.
- 6.2 The Landlord shall not be liable for any breach of its obligations in clause 6.1 where the breach arises from:
 - (a) repair replacement or maintenance of any installations or apparatus; or
 - (b) damage destruction or breakdown by reason of mechanical or other defect; or
 - (c) frost or other adverse weather conditions; or
 - (d) shortage of fuel materials water or labour; or
 - (e) any act omission or negligence of any person undertaking the Services or any of them on behalf of the Landlord; or
 - (f) any other cause beyond the reasonable control of the Landlord.

PROVIDED THAT the Landlord uses its reasonable endeavours to remedy the omission negligence interruption damage disrepair or other matter as soon as reasonably practicable having received notice of the same (save where in the Landlord's knowledge) and **PROVIDED** that the Landlord will allow the Tenant to contact the relevant supplier directly for the purposes of rectifying the breach of Landlord's obligation and the Landlord will use reasonable endeavours to assist the

Tenant to investigate and resolve the breach if requested to do so by the Tenant.

7. **INSURANCE**

The Landlord and the Tenant covenant with each other as follows:

7.1 Landlord to insure:

- (a) The Landlord shall insure and keep insured with some insurer of repute nominated by the Landlord or with Lloyd's Underwriters nominated by the Landlord and through such agency as the Landlord may from time to time determine and subject to such exclusions excesses and limitations as may be imposed by the insurers:
 - (i) the Building and all Plant and equipment serving the Building against loss or damage by the Insured Risks in the Reinstatement Cost;
 - (ii) the loss of Basic Rent and Service Charge from time to time payable or reasonably estimated to be payable under this Lease (together with any applicable Value Added Tax) for such period as the Landlord may from time to time reasonably deem to be necessary (being not less than three years); and
 - (iii) property owner's liability and such other insurance as the Landlord may from time to time reasonably deem necessary to effect.

PROVIDED ALWAYS that the Landlord shall not be under any obligation to insure any fixtures and fittings installed by the Tenant which have become part of the Property or any alterations to the Property unless the Tenant shall have given to the Landlord written notice of such installations or the carrying out of the same and of the full cost of reinstatement thereof and the Landlord has agreed with the Tenant to effect the insurance thereof.

- (b) The Landlord shall use its reasonable endeavours to:
 - (i) note the interest of the Tenant on the insurance policy for the Property; and
 - (ii) obtain confirmation of waiver of rights of subrogation and an invalidation clause.

7.2 Evidence of insurance

At the reasonable request of the Tenant the Landlord shall produce to the Tenant reasonable evidence from its insurers of the terms of the insurance policy together with evidence that the premium has been paid and the Landlord shall notify the Tenant of any material changes to the insurance policy as soon as reasonably practicable.

7.3 Destruction of the Property

If the Building or any part is destroyed or damaged by any of the Insured Risks then:

- (a) unless either the insurance shall have been vitiated, or the payment of the insurance monies shall be refused in whole or in part by reason of any act or default of the Tenant;
- (b) subject to the Landlord being able to obtain any necessary planning permission and all other necessary licences approvals and consents (which the Landlord shall use all reasonable endeavours to obtain without being obliged to institute any appeal); and
- (c) subject to clause 7.5,

the Landlord shall lay out the proceeds of such insurance (other than any in respect of loss arising under clauses 7.17.1(a)(ii) and 7.17.1(a)(iii)) as soon as reasonably practicable in the rebuilding and reinstatement of the Property or that part so destroyed or damaged substantially as the same were prior to any such destruction or damage with such variations as the Landlord may reasonably require or as may be requisite in accordance with the requirements of planning control and/or building and/or other regulations **AND PROVIDED THAT** the Property is not materially less commodious or convenient to the Tenant than it was before the damage or destruction occurred.

7.4 Cesser of Rent

In case the Building shall at any time during the Term be destroyed or damaged by any of the Insured Risks or Uninsured Risks so as to render the Property partially or wholly unfit for occupation or use and the insurance shall not have been vitiated or payment of the policy monies refused in whole or in part as a result of some act or default of the Tenant then the Basic Rent and Service Charge or a fair proportion thereof according to the nature and extent of the damage sustained shall from and after the date of such damage be suspended and cease to be payable and the Landlord shall cease to be liable for the provision of the Services until either:

- (a) the Property shall have been made fit for occupation or use; or
- (b) the period for which the Landlord insures loss of rent or service charge if applicable and as the case may be hereunder shall have expired,

whichever shall be the earlier and in the event of dispute as to the amount or duration of the abatement of the Basic Rent such dispute shall be settled by a single arbitrator to be appointed in accordance with clause 10.

7.5 Frustration

If the Building is destroyed or damaged by any of the Insured Risks so as to render the Property unfit for occupation or use and reinstatement of the Building is frustrated

or impossible or if reinstatement is not reasonably practicable within the period for which the Landlord covenants to insure against the loss of Basic Rent hereunder then this Lease may be determined by either party giving to the other six months' written notice at any time and the Landlord shall not be required to lay out the proceeds of the insurance in reinstatement and all such insurance monies shall belong to the Landlord absolutely.

7.6 Tenant not to vitiate insurance

(a) The Tenant shall:

(i) not do or omit to do in or upon the Property anything whatsoever which may render the Landlord liable to pay in respect of the Property or any neighbouring premises more than the ordinary rate of premium for insurance against the Insured Risks or which may make void or voidable any policy of insurance in respect of the Property or any neighbouring premises and to repay to the Landlord all expenses incurred by it in or about any renewal of such policy rendered necessary by a breach of this covenant and to pay to the Landlord on demand:

(A) any additional premium payable by the Landlord; and/or

(B) any sum paid by the Landlord which is not reimbursed under any policy of insurance,

by reason of any act or default of the Tenant;

(b) not insure the Property against any of the Insured Risks and not to take out any insurance in respect of any of the matters which the Landlord is required to insure under this Lease (save as provided herein);

(c) notify the Landlord as soon as reasonably possible in writing in the event of damage to the Property by any of the Insured Risks; and

(d) in the event of damage to the Property by any of the Insured Risks and upon the Landlord providing the Tenant with written notice of its intention to remove any Tenant's fixtures fittings at the Property, required for the Landlord to reinstate the Property in accordance with its obligations under this Lease remove such tenant's fixtures and fittings and other property of the Tenant as the Landlord may reasonably deem necessary and if the Tenant fails to remove the items or disputes that this is necessary (acting reasonably) within 30 days of receipt of the notice then the parties will use reasonable endeavours to formulate a plan for removal and / or storage of the items within 10 working days. The parties will then use reasonable endeavours to execute that plan.

8. LANDLORD'S RIGHTS

8.1 Landlord's right to forfeit Lease

If any of the following events occur:

- (a) any of the Reserved Rents or other sum due under this Lease are unpaid twenty-one days after becoming due (whether formally demanded or not in respect of the Basic Rent);
- (b) there is a material breach by the Tenant or the Surety of any covenant or other term of this Lease;
- (c) the Tenant or the Surety enters into an arrangement or composition for the benefit of creditors (save in respect of a genuine (save that this shall not apply to a members' voluntary winding up for the purpose of reconstruction or amalgamation with a solvent body corporate);
- (d) the Tenant or the Surety being an individual (or if more than one individual then any one of them):
 - (i) becomes bankrupt;
 - (ii) makes an application to the Court for an interim order under Part VIII of the Insolvency Act 1986; or
 - (iii) a statutory demand under the Insolvency Act 1986 is served on him;or
- (e) the Tenant or the Surety being a body corporate (or if more than one of them is a body corporate then any one of them):
 - (i) has a winding-up petition or a petition for an administration order presented against it or applied for by it or the directors or shareholders resolve to present a petition for an administration order or an administration order is made or notice of intention to appoint an administrator is given or notice of appointment is filed;
 - (ii) passes a winding-up resolution or enters into liquidation (other than a members voluntary winding up for the purpose of reconstruction or amalgamation with a solvent body corporate); or
 - (iii) has a receiver or an administrative receiver or a receiver and manager appointed,

then the Landlord may re-enter the Property or any part of the Property in the name of the whole and forfeit this Lease and the tenancy created by this Lease shall immediately come to an end without prejudice to any of the other rights and remedies of the Landlord.

8.2 Landlord's right to carry out works on neighbouring premises

- (a) The Landlord shall have the right to alter add to and execute works on neighbouring premises (including for cleaning or building works and other reasonable purposes the erection of scaffolding on any part of the Building) (where such works cannot otherwise reasonably be carried out) notwithstanding that any window is obscured or obstructed or that the right of light and air or access to the Property may be interfered with **PROVIDED THAT** the Tenant and its customers have at all times during normal business hours a reasonable means of access to the Property and **FURTHER PROVIDED THAT** after completion of such works the access to or amenities of the Property shall be no less materially convenient than before.
- (b) In carrying out such works under clause 8.2(a) the Landlord shall cause as little inconvenience as reasonably practicable to the Tenant of the Property and shall make good any damage caused thereby to the Property and its contents.

8.3 Goods left on the Property

If at the Termination Date this tenancy has not been renewed by the Tenant or a reversionary lease granted to the Tenant and any goods furniture or effects belonging to the Tenant are left in the Property for more than twenty-eight days the Landlord shall have power to sell them as agent for the Tenant and the Landlord shall pay or account to the Tenant within ten days after a written demand for the proceeds of sale (without interest) less the proper costs of removal storage.

9. **PROVISOS**

9.1 No planning warranty

Nothing in this Lease or in any consent granted by the Landlord shall imply a warranty by the Landlord that the Property may be used for any specific purpose under the Planning Acts.

9.2 Rights and easements

The operation of section 62 of the Law of Property Act 1925 is excluded from this Lease and the Tenant shall not be entitled to any rights other than those expressly set out in this Lease.

9.3 Accidents

The Landlord shall not be responsible to the Tenant or the Tenant's licensees servants or agents nor to any other persons for any damage or loss or any accident happening or injury not caused or contributed to by the negligence of the Landlord or any employee of the Landlord.

9.4 Compensation

Any statutory right of the Tenant to claim compensation from the Landlord on vacating the Property shall be excluded to the extent that the law allows.

9.5 Disputes with adjoining occupiers

Any dispute arising between the Tenant and the tenants or occupiers of any neighbouring premises as to any Conduit shall be fairly and reasonably determined by the Landlord's Surveyor.

9.6 Notices

Section 196 of the Law of Property Act 1925 as amended by the Recorded Delivery Service Act 1962 shall apply to any notice required to be served by this lease provided that any requirement to send by Registered Post or Registered Letter or Recorded Delivery shall be satisfied by delivery using the Special Delivery service of Royal Mail Group pic trading as Royal Mail or such other reasonably equivalent service as may be operated by Royal Mail Group pic or the successor in title to its business from time to time.

9.7 Consent and Acceptance by Guarantor

In the event of the Tenant having any proposals for which it requires a consent or licence from the Landlord under the terms of this Lease the Landlord shall not be obliged to grant such consent or licence unless the Tenant shall procure that any person who may from time to time be a guarantor of the Tenant's obligations in this Lease shall be a party to any such consent or licence in order to confirm its consent to the said proposals and its acceptance that its obligations as guarantor shall continue in full force and effect notwithstanding the grant of the licence or consent.

10. **ARBITRATION OR DETERMINATION BY EXPERT**

10.1 Arbitration

- (a) Where this Lease provides for reference to arbitration then in the absence of any contrary provision reference shall be made in accordance with the Arbitration Act 1996 to a single arbitrator agreed between the Landlord and the Tenant or in the absence of agreement nominated by the President for the time being of The Royal Institution of Chartered Surveyors or the person for the time being authorised to act on his behalf on the application of either the Landlord or the Tenant
- (b) If the arbitrator appointed or nominated under clause 10.1(a) shall die or decline to act the President for the time being of The Royal Institution of Chartered Surveyors or the person for the time being authorised to act on his behalf may on the application of either the Landlord or the Tenant discharge the arbitrator and appoint another in his place.

10.2 Experience of arbitrator

The arbitrator shall if reasonably practicable be a surveyor experienced in the valuation or letting of premises of a similar kind within the locality of the Property.

10.3 Costs of arbitrator

If the arbitrator is ready to make his award but is unwilling to do so due to the failure of either party to pay its share of the costs in connection with the award then the other party may serve upon the defaulting party a notice requiring the defaulting party to pay such costs within fourteen days and if the defaulting party fails to comply with the notice the other party may pay to the arbitrator the defaulting party share of the costs and any amount so paid shall be a debt due forthwith from the defaulting party to the other.

11. PAYMENTS

11.1 All payments under this Lease shall be drawn on a branch of a bank or building society located within the United Kingdom and from an account in the name of the Landlord or Tenant (as the case may be) or its solicitors.

11.2 The parties to this Lease agree to provide any information that may reasonably and lawfully be required by their solicitors or otherwise in order to enable that party or its solicitors to comply with the Money Laundering Etc. Regulations 2017.

12. GOVERNING LAW AND JURISDICTION

This Lease shall be governed by and shall be construed in accordance with English law and the parties irrevocably agree to submit to the non-exclusive jurisdiction of the English courts.

13. THIRD PARTY RIGHTS

This Lease creates no rights in any third parties to enforce its terms pursuant to section 1 of the Contracts (Rights of Third Parties) Act 1999.

14. NEW LEASE

It is hereby certified that this Lease is a new lease for the purposes of the Landlord and Tenants (Covenants) Act 1995.

15. EXCLUSION OF THE LANDLORD AND TENANT ACT 1954 SECTIONS 24-28

15.1 The Tenant confirms that before it became contractually bound to enter into the tenancy created by this Lease:

(a) the Landlord served on the Tenant a notice in relation to the tenancy created by this Lease (the "Notice") in a form complying with the requirements of Schedule 1 to the Regulatory Reform (Business Tenancies) (England and Wales) Order 2003 (the "Order");

(b) the Tenant or a person duly authorised by the Tenant being Elizabeth Handley-Garland

in relation to the Notice made a statutory declaration (the "Declaration")
dated 22 August 2025 in a form complying with
the requirements of Schedule 2 of the Order.

15.2 The Notice was served on 22 August 2025.

15.3 The Tenant further confirms that where the Declaration was made by a person other than the Tenant the declarant was duly authorised by the Tenant to make the Declaration on the Tenant's behalf.

15.4 The Landlord and Tenant agree to exclude the provisions of sections 24 to 28 (inclusive) of the Landlord and Tenant Act 1954 in relation to the tenancy created by this Lease.

16. EFFECTIVE DATE

The provisions of this Lease (other than those contained in this clause) shall not have effect until this Lease has been dated.

17. BREAK CLAUSE

17.1 Definitions

Break Date: 21 day of August 2030.

Break Notice: written notice to terminate this lease on the Break Date specifying the Break Date and served in accordance with 17.1.

17.2 The Tenant may terminate this lease by serving a Break Notice on the Landlord at least six months before the Break Date.

17.3 A Break Notice shall be of no effect if, at the Break Date:

- (a) the Tenant has not paid any part of the Basic Rent and Service Charge any VAT in respect of them, which was due to have been paid or before the Break Date provided that in respect of the Service Charge:
 - (i) the Break Notice shall be of effect notwithstanding that the Tenant has not paid, at the Break Date, any part of the Service Charge in respect of which there is a bona fide dispute at the relevant time; and
 - (ii) this subclause (a) shall only apply in respect of any Service Charge (and any VAT in respect of it) that has been properly demanded not less than 10 working days prior to the Break Date; or
- (b) the Property has not been returned to the Landlord free of the Tenant's occupation and the occupation of any other third party;
- (c) there are continuing underleases at the Property;

- 17.4 Subject to clause 17.2 and clause 17.3, following service of a Break Notice this lease shall terminate on the Break Date.
- 17.5 Termination of this Lease on the Break Date shall not affect any other right or remedy that either party may have in relation to any earlier breach of this lease.
- 17.6 If the Tenant does not serve notice to terminate this Lease pursuant to the terms of this clause 17, the Basic Rent for the period from and including the day after the Break Date until and including *[insert date being the end of the 6 months after the Break Date]* shall be reduced to a peppercorn.
- 17.7 If this lease terminates in accordance with clause 17.3 then, within 10 working days after the Break Date, the Landlord shall refund to the Tenant the proportion of any Basic Rent, Insurance Rent and Service Charge (including any Interim Service Charge) paid in advance on a pro rata basis and which relates to the period from and excluding the Break Date.
18. **TRUSTEES LIMITATION OF LIABILITY**
- 18.1 Vistra Trust Company (Jersey) Limited and Vistra (C.I.) Limited are entering into the Lease as joint trustees of the Russell Square House Unit Trust ("Unit Trust") and, as such, any liability on their part pursuant to the Lease is limited to the net assets held on trust for time to time for the Unit Trust which are in their possession or under their control as joint trustees of the Unit Trust.
- 18.2 Notwithstanding any other provision of the Lease, Vistra Trust Company (Jersey) Limited and Vistra (C.I.) Limited have no obligation to meet any claim or liability under the Lease except to the extent that they can properly meet their claim or liability jointly but not severally), or any part of such claim or liability, out of the net assets held on trust from time to time for the Unit Trust.
- 18.3 The limitation of liability provided in this clause 18 shall not apply in the case of fraud of Vistra Trust Company (Jersey) Limited and Vistra (C.I.) Limited

This Lease has been executed and delivered as a deed on the date first written above.

SCHEDULE 1

Part 1

Rights Granted

The Tenant shall be entitled to exercise the rights contained in this schedule in common with the Landlord and all other persons having a like right.

- 1 The right to use the Common Parts for all proper purposes in connection with the use and enjoyment of the Property.
- 2 The right to free passage and running of all services through the Conduits situate in the Building that serve the Property.
- 3 The right of support shelter and protection for the benefit of the Property that is now enjoyed from all other parts of the Building.
- 4 The right to erect and retain on such parts of the Building as may first be agreed in writing by the Landlord in its proper discretion such plant, machinery, aerials and other telecommunications equipment as may be reasonably required by the Tenant in connection with its use and enjoyment of the Property for the Permitted Use together with the right of access to and egress from such equipment over and along such access route through the Building as the Landlord may from time to time reasonably designate **AND** the Landlord hereby confirms that the plant machinery, signage, security equipment and associated conduits located at the Property and the exterior of the Building as at the date hereof are permitted.
- 5 The right to use that part of the Building (other than the Property) so designated by the Landlord for the deposit of all rubbish and refuse in proper receptacles for collection by or on behalf of the local authority.
- 6 The right in emergencies or during fire drills to use any designated escape route through the Building as may be designated from to time, including the use of the fire escape stairs from the basement of the Property to the ground floor level of the Building.
- 7 The right to use the bike racks and showers located within the Building on a first come first served basis.

Part 2

Rights Reserved

- 1 The rights of light air and all other easements and rights now or hereafter belonging to or enjoyed by any part of the Building or any neighbouring premises.

- 2 The right of support protection and shelter for the benefit of any part of the Building or any neighbouring premises.
- 3 The full right and liberty at any time hereafter to build on or otherwise develop or make any alterations or additions or execute any other works to any other part of the Building or any neighbouring premises or to erect any new buildings thereon in such manner as the Landlord or the person exercising the right shall think fit notwithstanding the fact that the same may obstruct affect or interfere with the amenity of or access to the Property or the passage of light and air to the Property and without prejudice to the generality of the foregoing the rights of access referred to in clause 4.8 of this Lease.
- 4 The right of free and uninterrupted passage and running of all services in and through the Conduits upon through over or under the Property.
- 5 The right to maintain and replace any Conduits for the benefit of all other parts of the Building or any neighbouring premises.

PROVIDED THAT any rights or easements excepted and reserved in this schedule over anything which is not in being at the date hereof shall be effective only in relation to any such thing which comes into being before the expiry of the Specified Period.

Part 3

Covenants and other matters affecting or benefitting the Property

The matters referred to or contained in the Property Register and entry 2 of the Charges Register of title number NGL737257 (excluding financial charges) as at 11 JUL 2024 timed 16:34:10.

SCHEDULE 2

Service Charge

Part 1

Computation and Payment

1. Certificate of Landlord's Expenses

1.1 Landlord's Expenses

In any Accounting Period the Landlord's Expenses shall include all reasonable and proper costs and expenditure in respect of and incidental to the Services referred to in this schedule whenever reasonably and properly paid or incurred whether before or during the Term (but provided and to the extent that they relate to the Term) including such provision for anticipated expenditure as the Landlord's Surveyor shall at its reasonable discretion allocate to that Accounting Period.

1.2 Omissions

The omission of any item of expenditure from a certificate of the Landlord's Expenses prepared for any Accounting Period shall not preclude the inclusion of such item in a certificate for any subsequent Accounting Period.

1.3 Issue of certificate

As soon as reasonably practicable after each Accounting Period the Landlord shall ensure that:

(a) the Accountant issues a certificate containing:

- (i) a summary of the Landlord's Expenses for that Accounting Period; and
- (ii) a summary of any expenditure that forms part of the Landlord's Expenses in respect of any previous Accounting Period not taken into account in the certificate for any previous Accounting Period;

(b) a copy of the certificate referred to in 1.3(a) is issued to the Tenant.

1.4 Certificate conclusive

Any certificate issued by the Accountant or the Landlord's Surveyor in connection with the Landlord's Expenses shall be conclusive (save in respect of manifest error) as to all matters of fact save in the case of manifest error.

2. Payment

2.1 Payment of Service Charge

The Tenant shall pay the Service Charge in respect of each Accounting Period as set out in paragraph 2.2.

2.2 Payment of Interim Service Charge

For each Accounting Period the Tenant shall pay to the Landlord by equal quarterly payments in advance on the four usual quarter days in every year the Interim Service Charge the first payment being a proportionate sum in respect of the period from and including the date of this Lease to the next following quarter day to be made on the date of this Lease. If the Interim Service Charge for any Accounting Period is not ascertained and notified to the Tenant by the first quarter day in that period the following provisions shall apply:

- (a) until the quarter day following notification of the Interim Service Charge the Tenant shall pay on account a provisional interim charge at the rate previously payable;
- (b) on notification of the revised Interim Service Charge the Tenant shall pay to the Landlord the amount by which the revised charge exceeds the amount paid on account; and
- (c) on the quarter day following notification of the Interim Service Charge the Tenant shall commence payment of the Interim Service Charge at the revised rate.

2.3 Revision of Interim Service Charge

The Landlord's Surveyor may revise the Interim Service Charge payable in respect of any Accounting Period to take into account any actual or expected increase in expenditure and as soon as reasonably practicable following any revision the Landlord's Surveyor shall certify the amount of the revised Interim Service Charge.

2.4 Final account and adjustment

- (a) The Landlord shall as soon as reasonably practicable at the end of each Accounting Period provide the Tenant with an account of the Service Charge payable in respect of that Accounting Period with credit being given to the Tenant for payments of the Interim Service Charge made on account.
- (b) The Tenant shall on written demand pay to the Landlord the amount by which the Service Charge exceeds payments received by way of Interim Service Charge.
- (c) Any overpayment of Service Charge and/or Interim Service Charges shall be credited against sums due from the Tenant in respect of the following Accounting Period except in so far as, the Lease has determined by reason of surrender, merger, the assignment of the Tenant's interest in the Lease, the exercise of a break clause by the Tenant, the expiration of the term herein granted or, by any other method and in such case any overpayment

of Services Charges will be refunded to an account nominated by the Tenant.

2.5 Exclusions

There shall be excluded from the Landlord's Expenses any:

- (a) costs or expenses incurred by the Landlord in connection with any development, or improvement of the Building;
- (b) any expenditure in respect of any part of the Building for which the Tenant or, any other tenant shall be wholly responsible and;
- (c) all contributions to or, on account of such costs expenses and outgoings which the Landlord shall receive from any person other than a tenant of the Building;
- (d) costs arising from any damage or destruction to the Building caused by an Insured Risk or an Uninsured Risk;
- (e) costs incurred in respect of any unlet Lettable Unit and unrecovered costs due from another tenant of the Building;
- (f) costs in respect of any latent or inherent defects;
- (g) rent collection costs and costs incurred in dealing with any lettings or rent reviews at the Building.

2.6 Service Charge Cap

2.6.1 Defined terms

Paragraph 2.6 uses the following definitions:

"Base Figure"

- (a) for the period, where the preceding Accounting Period was the first Accounting Period, ^{138.4} (being the Index figure for the month three months before the start of the Term); and
- (b) otherwise the index figure for the month three months before the start of the preceding Accounting Period;

"Budgeted Amount" is C where:

A

_____ = C

B

And:

A is the Landlord's budgeted amount of the Landlord's Expenses for the Building (excluding all costs and expenses of or incurred by the Landlord in providing utilities to the Common Parts as part of the Services) for the Accounting Period in which the Break Date occurs; and

B is 65,639 sq ft (or such figure used at the relevant time for the Building in respect of all Service Charge calculations for all lettings at the Building)

"Certified Amount" is F where:

D

_____ x 7703 = F

E

And:

D is the certified amount of the Landlord's Expenses for the Building (excluding all costs and expenses of or incurred by the Landlord in providing utilities to the Common Parts as part of the Services) for the Accounting Period immediately before the one in which the Break Date occurs

E is 65,639 sq ft (or such figure used at the relevant time for the Building in respect of all Service Charge calculations for all lettings at the Building)

"Current Figure" the Index figure for the month three months before the first day of the relevant Accounting Period;

"Index" the "all items" figure of the Index of Consumer Prices published by the Office for National Statistics or any successor Ministry, Department or Government Agency;

"Initial Service Charge Cap" £102,835 which figure shall exclude all costs and expenses of or incurred by the Landlord in providing utilities to the Common Parts as part of the Services; and

"Service Charge Cap"

(a) for the first Accounting Period during the Term, the Initial Service Charge Cap; and

(b) for each subsequent Accounting Period, whichever is the higher of:

(i) the Service Charge Cap for the preceding Accounting Period; and

(ii) the figure calculated according to the following formula:

$$\frac{A}{B} \times C$$

Where:

A is the Current Figure;

B is Base Figure; and

C is the Service Charge Cap for the preceding Accounting Period.

Subject to re-basing in accordance with paragraph 2.6.3 below.

2.6.2 Service charge cap

Subject to paragraph (b) the Service Charge in any Accounting Period will not exceed the Service Charge Cap attributable to that Accounting Period (duly apportioned where the Accounting Period is other than a full 12 months) Provided always that the Service Charge Cap shall at all time exclude all costs and expenses of or incurred by the Landlord in providing utilities to the Common Parts as part of the Services

2.6.3 Rebasing

(a) If the Lease shall not have been determined on the Break Date, the following shall happen:

- (i) the Service Charge Cap current immediately before the Break Date shall apply on a prorated basis for the period up to and including the day before the Break Date; and
- (ii) the Service Charge Cap for the period from and including the Break Date for the remainder of the Accounting Period in which the Break Date occurs shall be calculated as follows:

[[the Budgeted Amount + £2.50] x 7703 sqft]

PROVIDED always that where the resulting figure from such calculation exceeds the Certified Amount by more than 10 percent then for each percent above such 10 percent the revised Service Charge Cap shall be calculated so as only to include an increase of half of each such percent;

and

- (iii) the amount calculated pursuant to paragraph (b)(ii) above shall apply as the Service Charge Cap from and including the Break Date for the remainder of the Accounting Period in which the Break Date occurs (prorated for the period from and including the Break Date up to the end of that Accounting Period), and that Service Charge Cap shall be the figure used for calculating the next Service Charge Cap for the next Accounting Period pursuant to the calculation set out in limb (b) of the definition of Service Charge Cap.

2.6.4 Changes in the Index

(a) If the Index is no longer published or if there is any material change in the way it is compiled or the date from which it commences then a new arrangement for indexation or a rebasing (the "Revised Indexation") will be substituted for the calculation of the Service Charge Cap to reflect increases in the cost of living on a similar basis to that originally set out in this Lease.

(b) If the parties are unable to agree a basis for the Revised Indexation then, if either party requests it, the parties must make a joint application to the President of the Institute of Chartered Accountants in England and Wales to appoint an arbitrator to do so. The parties must accept the identity of the nominated arbitrator and jointly appoint them to conduct the arbitration. The arbitration must be conducted in accordance with the Arbitration Act 1996.

Part 2

Services

1. Repair and Maintenance

- 1.1 The inspection, maintenance, repair rebuilding renewal replacement (where beyond economic repair) and decoration of the Retained Parts whenever the Landlord (acting reasonably) considers appropriate.
- 1.2 The painting and decoration of the exterior of the Building and washing down, cleaning and otherwise treating the exterior, stonework, brickwork and curtain walling and the exterior tiles glazed bricks and other washable surfaces.
- 1.3 The operation inspection, auditing, maintenance, repair, renewal replacement or modification of the Plant (where beyond economic repair) whenever the Landlord acting reasonably considers appropriate.
- 1.4 The inspection, maintenance, repair renewal and replacement (where beyond economic repair) of all Conduits excluding those whose maintenance is the responsibility of any tenant in the Building and making good all damage arising out of such inspection, maintenance, repair renewal and replacement.
- 1.5 The inspection, maintenance renewal and replacement (where beyond economic repair) of any fire alarms fire prevention and fire-fighting equipment in the Retained Parts.
- 1.6 The repair and maintenance of all boundary walls fences and gates.

2. Provisions of Facilities

The provision and replacement of:

- (a) such Plant that the Landlord (acting reasonably) considers appropriate for the efficient management and use of the Building or that is required to be maintained by any statutory local public or regulatory or other authority;
- (b) (lighting to such standard as the Landlord (acting reasonably) considers appropriate in the Retained Parts;

- (c) central heating and air conditioning to the Property and the Retained Parts to such temperatures as the Landlord (acting reasonably) considers appropriate;
- (d) supplying hot and cold water to the lavatory facilities in the Retained Parts and providing towels, soap, paper and other appropriate supplies;
- (e) providing maintaining, servicing, renewing, replacing and keeping in good condition all fixtures fittings furnishings tools and equipment and any other items the Landlord (acting reasonably) considers appropriate for performing the Services or for the appearance or upkeep of the Retained Parts;
- (f) collecting compacting and disposing of refuse from the Building.

3. **Cleaning**

Cleaning, treating and polishing the following to such standard as the Landlord acting reasonably shall consider adequate:

- (a) the Retained Parts; and
- (b) the exterior of all windows and window frames on the walls of the Building.

4. **Contracts**

Placing and running contracts for the provision of the Services to the Building .

5. **Gardens**

Planting and landscaping such parts of the Retained Parts as the Landlord (acting reasonably) considers appropriate and keeping all gardens and landscaped areas free from weeds and properly attended.

6. **Security**

Policing the Building and providing such security staff as the Landlord (acting reasonably) considers fit and proper and providing maintaining replacing and renewing security equipment in the Building.

7. **Employment**

Employing such persons as the Landlord (acting reasonably) considers necessary in connection with the provision of the Services including all or any of:

- (a) the payment of fees salaries statutory contributions and such other insurance health pension welfare redundancy and similar or ancillary payments and any other payments made by the Landlord; and

- (b) the provision of uniforms and working clothes for the Landlord's employees.

8. Fees

8.1 Discharging the reasonable and proper fees and disbursements of the Landlord's Surveyor the Accountant the Landlord's managing agents appointed from time to time and any other individual firm or company employed by the Landlord from time to time in connection with:

- (a) the supervision and management of the provision of the Services for the Building;
- (b) the preparation of statements or certificates of the Landlord's Expenses; and
- (c) the auditing of the Landlord's Expenses.

8.2 Discharging the reasonable and proper fees of the Landlord or a Group Company incurred in respect of any of the matters referred to in clauses 8.1(a) (b) (c) and (d) that are undertaken by the Landlord or an employee or a Group Company and **PROVIDED THAT** the fees of the managing agents (or the Landlord if appropriate) shall not exceed 10% of the Landlord's Expenses excluding the costs incurred under this paragraph 8.

9. Notices

Providing erecting maintaining and replacing notice boards, notices and such other signs in the Building as the Landlord considers appropriate.

10. Outgoings

Discharging all payments due in respect of:

- (a) the supply of electricity gas or other fuel for the provision of the Services and for all purposes in connection with the Retained Parts; and
- (b) the Landlord's liability to contribute towards the expense of making repairing maintaining rebuilding and cleaning any ways roads pavements structures and Conduits that are appurtenant to the Building or used for the Building in common with any adjoining or neighbouring property; and
- (c) existing or future taxes rates charges duties assessments impositions and outgoings whatsoever in respect of the Retained Parts; and
- (d) interest and fees in respect of monies borrowed to finance the provision of the Services.

11. Administration

Administering and managing the Building performing the Services and the Landlord's other obligations in this Lease and preparing statements or certificates of and auditing the Landlord's Expenses.

12. **Statutory requirements**

Taking all steps which the Landlord (acting reasonably) shall consider appropriate for complying with making representations against or otherwise contesting any Planning Act or other statute byelaw or notice relating to or alleged to relate to the whole or any part of the Building which is not the liability of any tenant of the Building.

13. **Nuisance**

Abating any nuisance affecting the Building except to the extent that such abatement is the liability of any tenant of the Building.

14. **Other Services**

Any other services provided or works carried out by the Landlord in respect of the Building or any part of it which the Landlord (acting reasonably) considers appropriate in the interests of and in accordance with usual principles of good estate management.

SCHEDULE 3

Covenants by the Surety

Covenant and Indemnity by Surety

- 1 The Surety hereby covenants with the Landlord as a primary obligation:
 - (a) that the Tenant or the Surety shall at all times duly pay the Reserved Rents in the manner and at the times herein specified and shall duly perform and observe all the covenants on the part of the Tenant contained in this Lease until such time either as the Tenant shall have lawfully assigned this Lease or otherwise ceased to be liable for the payment of the Reserved Rents and the performance and observance of the Tenant's covenants contained in this Lease whichever shall be the later; and
 - (b) to indemnify the Landlord against all claims demands losses damages liability costs fees and expenses whatsoever sustained by the Landlord by reason of or arising in any way directly or indirectly out of any act or default by the Tenant in the performance and observance of any of its obligations or the payment of any Reserved Rents and other sums.
- 2 It is hereby agreed that:
 - (a) the Surety is jointly and severally liable with the Tenant (whether before or after any of the events referred to in paragraphs 4(a)(i) 4(a)(ii) and 4(a)(iii) of this schedule) for the fulfilment of all the obligations of the Tenant under this Lease and agrees that the Landlord in the enforcement of its rights hereunder may proceed against the Surety as if the Surety was named as the Tenant in this Lease;
 - (b) the Surety shall not claim in any liquidation bankruptcy composition or arrangement of the Tenant in competition with the Landlord and shall remit to the Landlord the proceeds of all judgments and all distributions it may receive from any liquidator trustee in bankruptcy or supervisor of the Tenant and shall hold as trustee for the Landlord in a separate designated trust account for the benefit of the Landlord all security and rights the Surety may have over assets of the Tenant whilst any liabilities of the Tenant or the Surety to the Landlord remain outstanding;
 - (c) the Surety hereby waives any right to require the Landlord to proceed against the Tenant or to pursue any other remedy whatsoever which may be available to the Landlord before proceeding against the Surety; and

- (d) the Surety shall not be entitled to participate in any security held by the Landlord in respect of the Tenant's obligations to the Landlord under this Lease or to stand in the place of the Landlord in respect of any such security until all the obligations of the Tenant or the Surety to the Landlord under this Lease have been performed or discharged.
- 3 None of the following or any combination thereof shall release determine discharge or in any way lessen or affect the liability of the Surety as principal debtor under this Lease or otherwise prejudice or affect the right of the Landlord to recover from the Surety to the full extent of this guarantee:
 - (a) any neglect delay or forbearance of the Landlord in endeavouring to obtain payment of the Reserved Rents or the amounts required to be paid by the Tenant or in enforcing the performance or observance of any of the obligations of the Tenant under this Lease;
 - (a) any refusal by the Landlord to accept rent tendered by or on behalf of the Tenant at a time when the Landlord was entitled (or would after the service of a notice under section 146 of the Law of Property Act 1925 have been entitled) to re-enter the Property;
 - (b) any extension of time given by the Landlord to the Tenant;
 - (c) to the extent permitted by the Landlord and Tenant (Covenants) Act 1995 any variation of the terms of this Lease or the transfer of the Landlord's reversion or the assignment of this Lease;
 - (d) any change in the constitution structure or powers of either the Tenant the Surety or the Landlord or the liquidation administration receivership or bankruptcy (as the case may be) of either the Tenant or the Surety;
 - (e) any legal limitation or any immunity disability or incapacity of the Tenant (whether or not known to the Landlord) or the fact that any dealings with the Landlord by the Tenant may be outside or in excess of the powers of the Tenant; or
 - (f) any other act omission matter or thing whatsoever whereby but for this provision, the Surety would be exonerated either wholly or in part (other than a release under seal given by the Landlord).
- 4 The Surety hereby further covenants with the Landlord that:
 - (a) if there shall be a disclaimer of this Lease whether by a liquidator trustee in bankruptcy the Crown or otherwise;
 - (b) if this Lease shall be forfeited; or

- (c) if the Tenant (being sole or the last surviving tenant) shall in the case of an individual die or in the case of a company be dissolved or if otherwise the Tenant shall cease to exist.

then the Surety shall if the Landlord by notice in writing given to the Surety within six months after such disclaimer or other event so requires accept from and execute and deliver to the Landlord a counterpart of a new lease of the Property for a term commencing on the date of the disclaimer or other event and continuing for the residue then remaining unexpired of the Term such new lease to be at the cost of the Surety and to be at the same Reserved Rents and subject to the same covenants conditions and provisions as are contained in this Lease; and

- (d) if the Landlord shall not require the Surety to take a new lease the Surety shall nevertheless upon demand pay to the Landlord a sum equal to the Reserved Rents that would have been payable under this Lease but for the disclaimer or other event for a period of six months or until the Landlord shall have granted a lease of the Property to a third party whichever shall be the earlier.

- 5 This guarantee shall ensure for the benefit of the successors and assigns of the Landlord under this Lease without the necessity for any assignment thereof.
- 6 The Landlord hereby covenants with the Surety/Tenant that should the Reserved Rents or, any part thereof remain unpaid 21 days after becoming due, the Landlord will notify the Surety/Tenant in writing within five working days thereafter that the Reserved Rents have not been paid within 21 days of their due date.

SCHEDULE 4

Authorised Guarantee Agreement

THIS DEED is made the day of 20[]

BETWEEN

(1) [] of [] (the "Landlord"); and;

(2) [] of [] (the "Tenant").

INTRODUCTION

- (A) The term granted by the Lease is vested in the Tenant and the Landlord is entitled to the reversion.
- (B) The Lease contains a covenant against assignment without the consent of the Landlord and provides that consent may be given subject to a condition that the Tenant enters into an authorised guarantee agreement (as defined in the Act).
- (C) The Tenant has requested the Landlord's consent to the assignment of the Lease to the Assignee which the Landlord has agreed to grant subject to the completion of this deed pursuant to that condition.

AGREED TERMS

1. In this deed (including the introduction) the following words and expressions have the following meanings:

"**Act**" means the Landlord and Tenant (Covenants) Act 1995;

"**Assignee**" means [];

"**Lease**" means a lease of the Property dated [] 2025 made between VISTRA TRUST COMPANY (JERSEY) LIMITED and VISTRA (C.I.)

LIMITED acting in their capacity as Joint Trustees of The Russell Square House Unit Trust (1) and SYSTEMIQ LIMITED (2); and

"Property" means Fourth Floor, 10-12 Russell Square House, Russell Square, London, WC1.

2. The Tenant hereby covenants with the Landlord as a primary obligation:
 - (a) that the Assignee shall at all times from the date hereof duly pay the rents reserved by the Lease in the manner and at the times therein specified and shall duly perform and observe all the Tenant's covenants contained in the Lease until such time as the Assignee shall be released from those covenants by virtue of the Act; and
 - (b) to indemnify the Landlord against all claims demands losses damages liability costs fees and expenses whatsoever sustained by the Landlord by reason of or arising in any way directly or indirectly out of any act or default by the Assignee in the performance and observance of any of the Tenant's covenants contained in the Lease.
3. None of the following or any combination thereof shall release determine discharge or in any way lessen or affect the liability of the Tenant as principal debtor under this deed or otherwise prejudice or affect the right of the Landlord to recover from the Tenant to the full extent of this guarantee:
 - (a) any neglect delay or forbearance of the Landlord in endeavouring to obtain payment of the rents or other amounts reserved by the Lease or in enforcing the performance or observance of any of the obligations of the Assignee under the Lease;
 - (b) any refusal by the Landlord to accept rent tendered by or on behalf of the Assignee at a time when the Landlord was entitled (or would after the service of a notice under section 146 of the Law of Property Act 1925 have been entitled) to re-enter the Property;

- (c) any extension of time given by the Landlord to the Tenant or the Assignee;
- (d) to the extent permitted by the Act any variation of the terms of the Lease or the transfer of the Landlord's reversion;
- (f) any surrender by the Assignee of part of the Property in which event the liability of the Tenant shall continue in respect of the part of the Property not so surrendered after making any necessary apportionments under section 140 of the Law of Property Act 1925;
- (g) any change in the constitution structure or powers of either the Tenant the Surety or the Assignee or the liquidation administration receivership or bankruptcy (as the case may be) of either the Tenant or the Assignee;
- (h) any legal limitation or any immunity disability or incapacity of the Assignee (whether or not known to the Landlord) or the fact that any dealings with the Landlord by the Tenant may be outside or in excess of the powers of the Assignee; or
- (i) any other act omission matter or thing whatsoever whereby but for this provision, the Tenant would be exonerated either wholly or in part (other than a release under seal given by the Landlord).

4. The Tenant hereby further covenants with the Landlord that:

- (a) (i) if there shall be a disclaimer of the Lease whether by a liquidator trustee in bankruptcy the Crown or otherwise;
- (ii) if the Lease shall be forfeited; or
- (iii) if the Assignee (being a sole or the last surviving tenant) shall in the case of an individual die or in the case of a company be dissolved or if otherwise the Assignee shall cease to exist;

THEN the Tenant shall if the Landlord by notice in writing given to the Tenant within six months after such disclaimer or other event so requires accept from and execute and deliver to the Landlord a counterpart of a new lease of the Property for a term commencing on the date of the disclaimer or other event and continuing for the residue then remaining unexpired of the term such new lease to be at the cost of the Tenant and to be at the same rents and subject to the same covenants conditions and provisions as are contained in the Lease; and

(b) if the Landlord shall not require the Tenant to take a new lease the Tenant shall nevertheless upon demand pay to the Landlord a sum equal to the rents that would have been payable under the Lease but for the disclaimer or other event for a period of six months or until the Landlord shall have granted a lease of the Property to a third party whichever shall be the earlier.

5. This guarantee shall ensure for the benefit of the successors and assigns of the Landlord under the Lease without the necessity for any assignment thereof.
6. Any provision of this deed rendered void by virtue of the Landlord and Tenant (Covenants) Act 1995 section 25 is to be severed from all remaining provisions and the remaining provisions are to be preserved.
7. If any provision in this deed extends beyond the limits permitted by the Landlord and Tenant (Covenants) Act 1995 section 25 that provision is to be varied so as not to extend beyond those limits.

For the avoidance of doubt the Tenant shall be liable for any costs and expenses incurred by the Landlord in enforcing the Tenant's obligations under this deed.

8. This deed shall be governed by and shall be construed in accordance with

English law and the parties irrevocably agree to submit to the non-exclusive jurisdiction of the English courts.

9. This agreement creates no rights in any third parties to enforce its terms pursuant to section 1 of the Contracts (Rights of Third Parties) Act 1999.

SCHEDULE 5

Rent Review

Part A

1. In this schedule the President is the President for the time being of the Royal Institution of Chartered Surveyors or a person acting on his behalf, and the Surveyor is the independent valuer appointed pursuant to Part B of this schedule.
2. The amount of Basic Rent shall be reviewed on the Rent Review Date to the greater of:
 - (a) the Basic Rent payable immediately before the relevant Rent Review Date (or which would then be payable but for any abatement or suspension of the Basic Rent or restriction on the right to collect it); and
 - (b) the open market rent agreed or determined pursuant to Part B of this schedule

Part B (Open market rent review)

1. The open market rent may be agreed between the Landlord and the Tenant at any time before it is determined by the Surveyor.
2. If the open market rent is determined by the Surveyor, it shall be the amount that the Surveyor determines is the open market yearly rent (exclusive of any VAT) at which the Property could reasonably be expected to be let:
 - (a) in the open market;
 - (b) at the relevant Rent Review Date;
 - (c) on the assumptions listed in paragraph 3 of this part; and
 - (d) disregarding the matters listed in paragraph 4 of this part.
3. The assumptions are:
 - (a) the Property is available to let in the open market:
 - (i) by a willing lessor to a willing lessee;
 - (ii) as a whole;
 - (iii) with vacant possession;
 - (iv) without a fine or a premium;
 - (v) for a term of 10 years (with a tenant-only option to break at the end of the fifth year) commencing on the relevant Rent Review Date ; and

- (vi) otherwise on the terms of this lease other than as to the amount of the Basic Rent and the provision in this lease for rent-free periods but including the provisions for review of the Basic Rent;
 - (b) the willing lessee has had the benefit of any rent-free or other concession or contribution which would be offered in the open market at the relevant Rent Review Date in relation to fitting out works at the Property;
 - (c) the Property may lawfully be used, and is in a physical state to enable it to be lawfully used, by the willing lessee (or any potential undertenant or assignee of the willing lessee) for any use permitted by this lease;
 - (d) the Landlord and the Tenant have fully complied with its obligations in this lease, save where the Landlord is in wilful and persistent breach;
 - (e) if the Property or any other part of the Building or any Service Media serving the Property, has been destroyed or damaged, it has been fully restored;
 - (f) no work has been carried out on the Property that has diminished the rental value of the Property (other than work carried out in compliance with clause 4.21); and
 - (g) any fixtures, fittings, machinery or equipment supplied to the Property by the Landlord that have been removed by or at the request of the Tenant, or any undertenant or their respective predecessors in title (otherwise than to comply with any law) remain at the Property.
4. The matters to be disregarded are:
- (a) any effect on rent of the fact that the Tenant or any authorised undertenant has been in occupation of the Property;
 - (b) any goodwill attached to the Property by reason of any business carried out there by the Tenant or by any authorised undertenant or by any of their predecessors in business; and
 - (c) any effect on rent attributable to any physical improvement to the Property and Service Media within or exclusively serving the Property carried out before or after the date of this lease, by or at the expense of the Tenant or any authorised undertenant with all necessary consents, approvals and authorisations and not pursuant to an obligation to the Landlord (other than an obligation to comply with any law); and
 - (d) any rent free period that is due to the Tenant pursuant to clause 17.6.
5. The Surveyor shall be an independent valuer who is a Member or Fellow of the Royal Institution of Chartered Surveyors. The Landlord and the Tenant may, by agreement, appoint the Surveyor at any time before either of them applies to the President for

the Surveyor to be appointed. Any application to the President may not be made earlier than three months before the relevant Rent Review Date.

6. The Surveyor shall act as an arbitrator in accordance with clause 10.1. The Surveyor shall determine the open market rent in accordance with the provisions of this Schedule. The Surveyor's decision shall be given in writing, and the Surveyor shall provide reasons for any determination. The Surveyor's written decision on the matters referred to him shall be final and binding in the absence of manifest error or fraud.
7. The fees and expenses of the Surveyor and the cost of the Surveyor's appointment and any counsel's fees, or other fees, reasonably incurred by the Surveyor shall be payable by the Landlord and the Tenant in the proportions that the Surveyor directs (or if the Surveyor makes no direction, then equally).
8. The Landlord and the Tenant shall otherwise each bear their own costs in connection with the rent review.

Part C

1. If the revised Basic Rent has not been agreed by the Landlord and the Tenant or determined by the Surveyor on or before the relevant Rent Review Date, the Basic Rent payable from the relevant Rent Review Date shall continue at the rate payable immediately before the relevant Rent Review Date. No later than ten working days after the revised Basic Rent is agreed or the Surveyor's determination is notified to the Landlord and the Tenant, the Tenant shall pay:
 - (a) the shortfall (if any) between the amount that it has paid for the period from the relevant Rent Review Date until the Rent Payment Date following the date of agreement or notification of the revised Basic Rent and the amount that would have been payable had the revised Basic Rent been agreed or determined on or before the relevant Rent Review Date; and
 - (b) interest at the Base Rate on that shortfall calculated on a daily basis by reference to the Rent Payment Dates on which parts of the shortfall would have been payable if the Basic Rent had been agreed or determined on or before the relevant Rent Review Date and the date payment is received by the Landlord.
2. Time shall not be of the essence for the purposes of all or any part of this Schedule.
3. If at any time there is a guarantor, the guarantor shall not have any right to participate in the review of the Basic Rent.
4. As soon as practicable after the amount of the revised Basic Rent has been agreed or determined, a memorandum recording the amount shall be signed by or on behalf of the Landlord and the Tenant and endorsed on or attached to this lease and its counterpart. The Landlord and the Tenant shall each bear their own costs in connection with the memorandum.

This deed has been executed and delivered as a deed on the date first written before.

Executed as a deed by **VISTRA (C.I) LIMITED** (in its capacity as joint trustee of the Russell Square House Unit Trust, a company incorporated in Jersey, acting by:

Paul Nash

and

Paul Le Marquand
who, in accordance with the laws of that territory, are acting under the authority of the company

VISTRA C.I. LIMITED

Signature in the name of the company

Signed by:

950FB628F5C64B1...
Authorised Signatory

Signed by:

5A81296D78634CA...
Authorised Signatory

Executed as a deed by **VISTRA TRUST COMPANY (JERSEY) LIMITED** (in its capacity as joint trustee of the Russell Square House Unit Trust, a company incorporated in Jersey, acting by:

Paul Nash

and

Paul Le Marquand
who, in accordance with the laws of that territory, are acting under the authority of the company

VISTRA TRUST COMPANY (JERSEY) LIMITED

Signature in the name of the company

Signed by:

950FB628F5C64B1...
Authorised Signatory

Signed by:

5A81296D78634CA...
Authorised Signatory

EXECUTED as a Deed by Systemiq Limited
acting by a director in the presence of:

Director

Witness Signature

Witness Name

Witness Address

Witness Occupation